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Kennesaw State University
Employee Handbook, Updated 2022

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KENNESAW STATE UNIVERSITY
HUMAN RESOURCES

Kennesaw State University Employee Handbook

This Employee Handbook does not represent contractual terms of employment. It is, rather, an explanation of employment policies subject to change by KSU. Please contact your HRBP for the most current information.

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KENNESAW STATE UNIVERSITY
HUMAN RESOURCES

Welcome

On behalf of the Kennesaw Staff University community, Human Resources is pleased to welcome you to our University. You have the opportunity, through your dedication, enthusiasm, and abilities, to help Kennesaw grow further in reputation both nationally and locally. You also have the opportunity through your skills, abilities, experience and the quality of your work to advance in your career and develop professionally as a valued member of the University community.

This handbook will enable you to have a more thorough understanding of the benefits of employment with Kennesaw State University. This guide to University policies and practices are intended solely to provide guidance and it is not an employment contract nor does it create any type of contractual obligations. Neither you nor the University is bound to continue the employment relationship if either, at any time, chooses to end it.

The University reserves the right to change, revise, or eliminate any of the policies, benefits, and practices described herein. Also, some of the policies and provisions contained herein may not be applicable to faculty members. Provisions applying solely to the faculty are described in the Faculty Handbook.

While this handbook provides mush detail, no handbook can provide for all circumstances.
Accordingly, Human Resources welcomes your ideas and suggestions on how the information in this handbook might be changed for the better. Likewise, Human Resources will answer any questions you may have regarding the University's policies, procedures, and practices.

Again, we welcome you into our growing organization and trust that you will have a long and rewarding career with Kennesaw State University.

About Our Handbook

This handbook is designed to assist you with your employment with Kennesaw State University (KSU). It includes basic University Information, governance, structure, compensation and benefits programs, and employee relations policies. Please read through this
handbook and retain it for future reference. The policies, procedures and processe s stated in this handbook are to work in conjunction with the policies, procedure and processes set by your division or department and are subject to change at the discretion of the University and its governing body. From time to time you will receive information from your department, division or the University that addresses the administration of these policies. If you
have any questions regarding any of the statements in the handbook, please see your supervisor or contact Human Resources.

University System of Georgia
Kennesaw State University is the third largest university in The University System of Georgia that began operation in 1932 and is among the oldest unified statewide systems of public higher education in the United States and includes all state operated universities, four-year colleges and two-year colleges in Georgia.

Board of Regents (BOR)
The BOR is the single governing and management authority for public higher education in Georgia.

Today the BOR is comprised of 19 members, five of whom are appointed from the state-at-large, and one from each of the state's 14 congressional districts.

Shared Governance
The three major constituencies of the university community (faculty, staff, and students) review and respond to important issues and conditions affecting them through their elected representative Senates. (University Handbook)

KENNESAW STATE UNIVERSITY
HUMAN RESOURCES

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1.0 EMPLOYMENT POLICIES

Kennesaw State University recognizes that the capacity of its employees is its greatest asset and endeavors to support employees' efforts to realize their full potential by:

- Employing and promoting on the basis of merit;
- Providing opportunities for training and development to all employees; and
- Providing opportunities for advancement

The pages of this handbook expand on these employment principles, setting fourth guidelines that affect your job.

1.1.1 Equal Opportunity Statement

Kennesaw State University works to ensure an equitable campus atmosphere for KSU employees, students, guests, and applicants for employment or admission; to create an environment that would be free from unlawful discrimination based on race, sex, religion, color, national origin, age, veteran's status, disability status or sexual orientation.

Kennesaw State University does not discriminate against any employee or applicant for employment with regard to any opportunity for which the employee is qualified.

For additional information or to file a complaint under the provisions of this policy, employees should contact the Office of Institutional Equity.

Every member of the Kennesaw State University community is expected to uphold this policy as a matter of mutual respect and fundamental fairness in human relations. All members of the faculty, staff, and student body are expected to ensure that nondiscriminatory practices are followed at the University.

1.1.2 Americans with Disabilities, Disabled Veterans & Veterans of the Vietnam Era

It is the policy of Kennesaw State University not to discriminate against any employee or applicant for employment because he or she is an individual with a disability, a disabled veteran or a veteran of the Vietnam Era. It is also the University's policy to take affirmative action to employ and advance in employment qualified disabled veterans, veterans of the Vietnam Era and individuals with disabilities. This policy applies to all employment actions including, but not limited to, advertising, recruitment, hiring, compensation, retention, training, demotion, promotion or transfer, layoff, reduction in force (RIF), termination or tenure.

Persons wishing to self-identify as an individual with disability, disabled veteran or veteran of the Vietnam Era should contact Human Resources.

An individual wishing additional information or to file a complaint should contact the Office of Institutional Equity (OIE).

Americans with Disabilities Act (ADA)

Kennesaw State University prohibits discrimination against qualified individuals with disabilities who can perform the essential functions of the job, with or without reasonable accommodation(s). An individual is disabled under the Act if he or she:

- Has a physical or mental impairment that substantially limits one or more major life activities; or
- Has a record of such an impairment; or
- Is regarded as having such impairment

KSU provides, and will continue to provide, reasonable accommodations to enable the hire and retention of qualified employees who are able perform the essential functions of their positions. Any person wishing to self-identify as disabled or request a reasonable accommodation due to a disability should contact Human Resources.

1.1.3 Sexual Harassment Policy

Federal law provides that it shall be an unlawful discriminatory practice for any employer, because of the sex of any person, to discharge without cause, to refuse to hire or otherwise discriminate against any person with respect to any matter directly or indirectly to employment or academic standing.

Harassment of an employee on the basis of sex violates this federal law. Sexual harassment of employees or students in the University System is prohibited and shall subject the offender to dismissal or other sanctions after compliance with procedural due process requirements. Unwelcome sexual advancements, requests for sexual favors, and other verbal or physical conduct of a sexual nature constitutes sexual harassment when:

- Submission to such conduct is made explicitly or implicitly a term or condition of an individual's employment or academic standing; or
- Submission to or rejection of such conduct by an individual is used as a basis for employment or academic decisions affecting an individual;

- Such conduct unreasonably interferes with an individual's work or academic performance or creates an intimidating, hostile or offensive working or academic environment.

1.1.4 Drug and Alcohol Policy

Kennesaw State University expressly prohibits the use, possession, sale, or distribution of alcohol beverages on campus by any campus constituency. Alcohol beverages may be served at off-campus activities to adults of legal drinking at which the activity is being held, providing that a responsible club or organization representative acknowledges responsibility for monitoring alcohol consumption.

The unlawful possession, manufacture, distribution, dispensation, and use of illicit drugs and alcohol by employees on the University campus is prohibited and violations of this policy will result in appropriate disciplinary action. Faculty, staff and students are expected to adhere to the policies of the University and observe the basic standards of good conduct, meet appropriate standards of performance, and observe all local, state and federal laws relative to unlawful use of illicit drugs and alcohol.

The Kennesaw State University Drug and Alcohol Policy can be found here.

The adherence to University policies on alcohol and drugs shall be the individual and personal responsibility of each employee of the University. Any employee who violates the policy on alcohol and/or drugs shall be subject to disciplinary action, up to and including termination from the University.

1.1.4a Drug and Alcohol Testing

The University is committed to maintaining safe, healthful and efficient working conditions for its students and employees. As part of this commitment, the University will conduct pre-employment screening examinations, random testing, post-accident testing, and reasonable suspicion testing in order to prevent the employment of individuals who have substance abuse problems.

Individuals selected for or employed in regular or temporary positions where the main duties include: carrying weapons and utilizing arrest powers, providing health care and treatment service, administering medications, driving vehicles, operating heavy machinery or equipment, lab safety, set building (theater), coaching, and providing counseling services directly related to

substance abuse will be subject to pre-screening and random testing.

Applicants and employees selected for testing and who fail to report for the test, decline testing, or engage in conduct that obstructs the testing process will be deemed to have refused testing. Individuals in such situations will not be employed by the University. Additionally, individuals who fail a substance abuse test will not be eligible for employment for two years afterwards.

Additional information on this policy and positions subject to testing is available from Human Resources.

1.1.4b Drug-Related Disciplinary Actions

Any employee who is convicted of unlawful manufacture, distribution, sale, use or possession of a controlled substance, an illegal or dangerous drug, or who admits guilt of any such offense in a court proceeding, shall be subject to disciplinary action up to and including termination. It is the employee's responsibility to inform the University of such convictions and/or admittance of guilt.

Employment following a drug related offense may be conditioned on the employee's completion of a drug abuse treatment and education program approved by Human Resources.

If, prior to arrest for an offense involving a controlled substance, or a dangerous and/or illegal drug, an employee notifies his or her immediate supervisor that he or she illegally uses a controlled substance, marijuana, or a dangerous drug and is receiving treatment or agrees to receive treatment under a drug abuse and education program approved by Human Resources, such employee shall be retained for up to one year as long as the employee follows the treatment plan. Retention of such employee shall be conditioned upon satisfactory completion of the program. The employee's work activities may be restructured if, in the opinion of the immediate supervisor, it is deemed advisable. No statement made by an employee to a supervisor or other person, in order to comply with this policy shall be admissible in any civil, administrative, or criminal proceeding as evidence against the employee. The rights herein granted shall be available to a University employee only once during a five-year period and shall not apply to any such employee who has

refused to be tested or who has tested positive for a controlled substance, marijuana or a dangerous and/or illegal drug.

1.1.5 Staff Grievance Procedure

The Staff Grievance Procedure is available to any classified employee or administrative officer working at least .50 FTE (full-time equivalency) who has completed the provisional employment period. The Staff Grievance Procedure is not available to temporary employees, faculty, students or non-University employees (consultants, contractors, etc.)

The Staff Grievance Procedure may be used by an eligible employee to bring a grievance about:

- An action or decision that is inconsistent with a specific University rule, regulation or policy;
- A suspension, demotion, or other disciplinary action(s); or
- An involuntary termination (involuntary terminations do not include resignation or retirement)

This Grievance Procedure may not be used to bring a grievance about:

- Performance evaluations;
- Flexible work option(s) decisions;
- Reductions in force;
- Salary and position classification determinations;
- Organization of a department or allocation of its resources;
- Termination of funding; or
- Non-renewal of a limited term position.

If an employee wishes to file a grievance, they may do so by contacting Human Resources.

Staff may view the entire Staff Grievance Procedure on the KSU HR website and/or with HR's Employee Relations staff. Employees should contact Human Resources for questions or clarification concerning the filing of a grievance or informal problem resolution services.

1.1.6 Performance Policy

Kennesaw State University supports a consistent, continuous and communicated performance management process. As required by Board of Regents policy, a formal, written performance evaluation is to be completed at least once every fiscal year. Additional information along with the performance evaluation forms is available on the Human Resources website.

1.1.7 Conflict of Interest (Including Outside Employment/Activities)

The University encourages employees to participate in activities of professional associations, government entities, industry organizations

and other public and/or private groups that serve to benefit the participants and the University. A conflict of interest occurs when an employee has competing professional or personal interests. Such competing interests can make it difficult to fulfill his or her duties impartially. A conflict of interest may exist even if no unethical or improper act results from it. A conflict of interest can create an appearance of impropriety that can undermine confidence in the person, profession, or the University. In those cases where an employee's activities are part of their regular duties and responsibilities and performed during the time they are receiving a KSU salary then the payment for non-University worked will be turned over to Kennesaw State University. To avoid actual or the appearance of conflict of interest, any employee who engages in remuneration activity in any field directly related to KSU programs must have prior approval of their Vice President.

1.1.8 Political Activities

As responsible citizens in a democratic society, employees are encouraged to fulfill their civic obligations and otherwise engage in the normal political processes of society. Nevertheless, it is inappropriate for employees to take an active part in political campaigns while on duty or to perform political services for which an employee receives compensation from the University. Therefore, the following policies governing political activities should be followed:

- Employees may not mange or take an active part in a political campaign that interferes with the performance of duties or services for which he or she receives compensation from Kennesaw State University.
- Employees may not hold elective political office at the state or federal level.
- Employees seeking elective political office at the state or federal level must first request a leave of absence without pay beginning prior to qualification as a candidate in a primary or general election and ending after the general or final election. If elected to state or federal office, such person must resign prior to assuming office.
- Employees may seek and hold elective office other than at the state or federal level, or appointed office, when such candidacy for or holding of the office does not conflict or interfere with the employee's duties and responsibilities to the University or the System.

1.1.9 Gratuities/Receipt of Gifts

No employee may accept gratuities, courtesies or gifts in any form whatsoever from any person or persons, corporations or associations

directly or indirectly seeking to use such actions for securing favorable comment or consideration on any commercial commodity process or undertaking.

The following is not considered a gratuity:

- Food or beverage consumed at an occasional meal or event, provided the value is reasonable;
- Promotional items distributed to the general public;
- Textbooks, software and instructional materials to be reviewed by teaching faculty;
- An award, plaque, certificate, memento or similar item given in recognition of the recipient's civic, charitable, political, professional, private or public service or achievement;
- Legitimate salary, honoraria, benefit, fees, commissions, or expenses associated with the recipient's non-public business, employment, trade or profession;
- Consulting fees, honoraria or financial benefits from sponsors or foundations, received in conformance with University System, campus policies and Georgia law;
- Gifts to or from University System foundations or other separately incorporated, charitable entities. (BOR, 8.2.14 GRATUITIES)

1.1.10 Workplace Violence

The University is committed to creating and maintaining a working, learning and social environment that is free from violence for all members of the University community. Civility, understanding and mutual respect toward all members of the University community are major factors providing excellence in teaching and learning. Acts or threats of physical violence, including verbal abuse, harassment, terrorism, hate, prejudice, stalking, intimidation and/or coercion that involve or affect the Kennesaw State community will not be tolerated. These threats or acts of violence include conduct against persons or property that are severe and offensive, and create a hostile, abusive or intimidating work environment.

If an employee has been confronted with a violent incident, he/she is encouraged to report such incident to his/her supervisor and to the University Police immediately.

1.1.11 Smoke-free and Tobacco-free policy

Kennesaw State University is dedicated to maintaining a healthy working and learning environment for employees, students, and visitors. The former KSU Smoking Policy has been updated to align with the Board of Regents of the University System of Georgia (USG) Tobacco and Smoke-Free Campus Policy,

effective October 1, 2014. The purpose of this policy is to create a smoke-free and tobacco-free environment at Kennesaw State University (KSU) and to establish the KSU Smoke/Tobacco-Free Committee with the responsibility for developing, implementing, and overseeing this policy, procedures, best practices, and activities for the University.

1.1.12 Policy on Amorous Relationships

The integrity of academic and work relationships is the foundation of the University's educational mission. These relationships vest considerable trust in persons with authority whether as mentor, educator, evaluator and/or administrator. The unequal institutional power inherent in University academic and work relationships heightens the vulnerability of those in subordinate positions. The University must protect itself from influences or activities that interfere with intellectual, professional and personal growth or with the University's financial interests. Consequently, people in positions of authority within the University community must be sensitive to the potential for conflict of interest as well as sexual harassment in amorous relationships with people over whom they have a professional power/status advantage. (Sexual Misconduct Policy of the University)

The individual in authority bears the primary responsibility of any negative consequences resulting from an amorous relationship. It is in the interest of the University to provide clear direction and educational opportunities to the University community about potential professional risks associated with consensual amorous relationships between members of the University community where a power/status advantage exists.

a) Power Advantages. Staff Advantage: A staff member will always be treated as having a power advantage when the staff member has the authority to evaluate, determine salary and/or make employment decisions.
b) Other Power Advantage: Power advantages also can occur between junior and senior faculty, faculty and administrators and faculty/administrators and staff.

1. Conflict of Interest in Amorous Relationships
   Relationships that are mutual and consensual may be viewed by others as exploitative and may adversely affect the work environment in that serious conflicts of interests may be perceived to exist. In particular, the parties to an amorous relationship should be aware that such relationships often create general conflicts of interest and the fear from co-workers or students of unfair treatment in terms of promotions, grades, etc. Therefore, the

University prohibits the parties who are or have been involved in any amorous relationship from evaluating each other.

There are situations sufficiently complex that judgments may differ as to whether there is or may be a conflict of interest, and individuals may inadvertently place themselves in situations where conflict exists. Accordingly, for the common good, should a situation arise in which parties who are or have been involved in any amorous relationship come into a position in which they would normally be called upon to evaluate one another or make significant management decisions such as pay or promotion, the individual in authority must promptly report this fact to his or her supervisor. The supervisor will then make arrangements to see that those who are or have been involved in any amorous relationship do not make such decisions or evaluations for each other.

2. Malicious Use of This Policy
   It is important to avoid conflict of interests resulting from amorous relationships; it is equally important to recognize that malicious accusations of inappropriate amorous relationships have the potential to severely damage a person's career and reputation. Therefore, the University prohibits making knowingly false accusations that an unreported amorous relationship exists or existed between two parties now in a position to evaluate each other.

1.1.13 Relocation

Relocation and moving expenses may be provided for new, regular faculty and administrators if funds are available in the department or college budget and relocation assistance benefits the University and its recruitment effort. The exact amount of reimbursable relocation expenses will be determined on a case-by-case basis and must be specified in the written offer of employment.

Please refer to Relocation Procedures for the complete relocation policy and to access the KSU Relocation and Moving Expense Reimbursement Form.

1.1.14 Travel Regulations and Travel Forms

To ensure compliance and avoid incurring non-reimbursable expenses, it is important that each employee review the State travel regulations

prior to any travel. All regulations and available forms can be found on the KSU Travel Team website.

1.2 Categories of Employment

Depending on the number of hours worked, employees will be designated as a full-time or part-time employee. Employees whether full-time or part-time, are classified as either exempt or nonexempt in accordance with the requirements of applicable wage and hour laws. The terms exempt and nonexempt are from federal law (the Fair Labor Standards Act, or FLSA). The FLSA designates the types of jobs that must be tracked and paid on an hourly (non-exempt) basis, and the types of jobs that may be paid on a salaried (exempt) basis.

The University's employment categories are as follows:

1.2.1 Regular

Staff employed for a continuous period expected to exceed one year are "regular" employees. Human Resources is responsible for determining if a position is regular or temporary and whether it is exempt or non-exempt in compliance with Federal law.

1.2.1a Full-Time

Full-time employment consists of a regular schedule of 40 hours per week and is generally eligible for all University benefits.

1.2.1b Part-Time

Part-time employment consists of a regular schedule of less than 40 hours per week. It is the policy of Kennesaw State University that employees regularly scheduled and budgeted to work 30 or more hours per week are eligible for most benefit programs, subject to any specific requirements described under each benefit program.

1.2.1c Limited Term

Limited Term positions are created or budgeted for some defined period that is expected to be at least 6 months, but that is not expected to continue indefinitely.

Typical examples are positions that are created or funded through grants or sponsored projects, where the life cycle of the grant may be one to three years.

Other examples are positions only for a limited period due to a special campus project or need. Limited Term positions of at least 50% FTE are benefits-eligible, and must be posted/advertised just like a regular position. Positions expected

to exist for more than three years should be established as regular positions.

1.2.1d Employment on a Grant or Contract
If a position at the University is funded by a grant or a contract, it is subject to the availability of funds. In the event that the grant or contract funds are exhausted or reduced, or the grant or contract is completed or cancelled, the employment may terminate without the right of employee appeal. An employee working in a position funded by a grant or contract should take accrued vacation during the term of the grant or contract since funds may not be available to pay for accumulated vacation after the grant or contract ends.

1.2.2 Temporary
Employees who are not employed as "regular" employees are "temporary" employees. Temporary employees may be hired directly or retained through a temporary staffing agency approved by DOAS. Temporary employees may be employed part-time or full-time for a period no longer than six calendar months. After 6 months of temporary employment, the individual will be terminated by HR and may be rehired only after a period of 180 calendar days has elapsed. Although student assistants are considered temporary employees, they are NOT subject to these service and reemployment restrictions.

Temporary – Occasional: Occasional employees are a subcategory of temporary. An individual with an "occasional" appointment works sporadically, but might work on a recurring basis, as needed, over a period longer than six (6) months. These individuals may work full-time or part-time for brief periods, but their total FTE over the course of a year should not exceed 49% of the time. Occasional positions are not benefits eligible.

There are four types of temporary personnel:

1.2.2a Temporary Non-Student
All temporary, hourly employees who are not currently enrolled in classes at the University and who are not identified as student assistants are designated as temporary non-student employees.

Temporary non-student employees may work no more than 40 hours per week in a University department or in combination with a job elsewhere in the University, except in cases of pre-approved written authorization by the immediate supervisor.

1.2.2b Temporary Student
Student Assistants

All hourly employees who are currently enrolled in at least a half-time credit load at the University with the intention of earning a degree and are not identified as temporary non-student employees or as a regular classified employees are designated as student assistants.

Student assistant employment is considered temporary employment. Student assistants are exempt from FICA withholdings (Social Security) if they are registered for 6 semester hours of undergraduate classes AND normally work no more than 20 hours per week. Students who do not meet the criteria will be taxed as a temporary non-student employee. Student assistants are temporary, non-benefited employees whose primary relationship with the University is that of student and not employee.

Graduate Assistantships

The Graduate Assistantship Program at Kennesaw State University is designed to provide opportunities for a graduate student to work closely with a graduate faculty member on projects related to the student's major field of study. One-semester assistantships are awarded to qualified full-time graduate students. Students must take a minimum of 6 hours of graduate coursework and a maximum of 9 hours during the term in which he/she holds a graduate assistantship. Each student will receive a stipend and discounted tuition. For more specific information please visit: http://www.kennesaw.edu/graduate/newgra.html.

1.2.2c Consultant/Independent Contractor

Persons in this category are not University employees. These individuals are on a contract to provide services to a department or unit and are not subject to the benefits outlined in this Handbook. Human Resources will determine who is an employee versus a consultant/contractor based on IRS guidelines.

1.2.3 Special Employment Situations

1.2.3a Employment of Foreign Nationals

The employment and/or payment of nonresident foreign nationals shall be in compliance with all applicable federal laws and shall comply with all relevant visa restrictions (B.O.R. 8.2.4 Employment of Foreign Nationals 8.2). For policies and procedures relating to employment of Foreign Nationals at Kennesaw State University, please refer to https://web.kennesaw.edu/hrinternational/

1.2.3b Employment of Relatives

The basic criteria for the appointment and promotion of employees shall be appropriate qualifications and performance. Relationship by family or marriage shall constitute neither an advantage nor a disadvantage.

No individual shall be employed in a department or unit who will result in the existence of a subordinate-superior relationship between such individual and any relative of such individual through any line of authority. As used herein, "line of authority" shall mean authority extending vertically through one or more organizational levels of supervision or management. This standard does not apply to the temporary or part-time employment of children under age 25.

For the purpose of this policy, relatives are defined as spouses, parents, children, brothers, sisters, in-laws and individuals who reside in the employee's household.

1.2.3c Employment of Retirees

An individual who has retired from the University System of Georgia and is receiving benefits from the Teachers Retirement System (TRS), the Employees Retirement System (ERS), or the Regent's Optional Retirement Plan (ORP), may be eligible for reemployment on a part-time basis. Reemployment of USG retirees by the University System of Georgia must fall under the following conditions:

1. The reemployment of a University System of Georgia retiree must be approved by the president. Faculty must submit a copy of a hiring proposal to Academic Affairs. Staff must submit hiring proposals to HR.
2. A rehired retiree must have a minimum break of at least one month between the effective date of his/her retirement and the effective date of his/her re-employment;
3. The work commitment of a rehired retiree must be less than half-time; i.e., 49% or less;
4. The salary that is paid to a rehired retiree must be
    a. No more than 49% of the annual benefit-base compensation amount that he/she was earning at the time of his/her retirement, with consideration for the average merit increase percentages that have been applied since the employee retired, or;

b. No more than 49% of the average compensation for the position into which the retiree is being hired based on the institutions' existing compensation plan, or, if not applicable, the average compensation of existing or previous incumbents, or;
c. No more than 49% of a reasonable market competitive rate for the position into which the retiree is being rehired as determined by the institutional chief human resources officer.

5. The salary that is paid to a rehired retiree must be consistent with his/her work commitment.

For complete information visit https://hr.kennesaw.edu/.

1.2.3d Employment of Minors

The employment of all persons under the age of 18 years shall be in compliance with the regulations of the U.S. Department of Labor and may require an employment certificate issued by the school system.

1.3 Hiring and Termination Guidelines

1.3.1 Pre-Employment Screening

The pre-employment screening process consists of a national background check and may include supplementary job-related screenings such as drug testing, credit report and driving record checks.

1.3.1a Background Check

A background investigation will be conducted on the candidate of choice for regular and temporary positions. Per BOR guidelines, a background check may also be required for employees who are promoted or reclassified. Offers of employment shall be conditional pending the result of the background investigation that will include, at a minimum, the following:

- A state and federal criminal history check covering a minimum of seven (7) years;
- A nationwide sex offender search;
- A social security number check; and
- For all professional, faculty and academic positions, an academic credentials check.

Only criminal convictions are considered when examining an applicant's eligibility for employment in accordance with BOR guidelines.

1.3.1b Drug Testing

Employees holding a position that is considered "high risk" on a regular or temporary basis shall be subject to random drug testing for evidence of use of illegal drugs. A "high-risk" employee is defined as one whose job responsibilities pose a potential for significant risk or harm to the employee, other employees or the general public in the event of inattention to duty or errors in judgement while on duty. These employees include those employed in regular or temporary positions where the main duties include: carrying weapons and utilizing arrest powers, providing health care and treatment service, administering medications, driving vehicles, operating heavy machinery or equipment, lab safety, set building (theater), coaching, and providing counseling services directly related to substance abuse will be subject to prescreening and random testing. Officers who are engaged full-time in purely administrative or clerical duties are not considered high risk.

Any "high risk" employee who declines a drug test, or who tests positive for drug use, shall be terminated from employment.

1.3.1c Consumer Credit Reports

Satisfactory credit reports are required for positions handling cash, credit or sensitive information and prior to the issuance of a University Purchasing Card to an employee (Purchasing Manual). Credit reports are conducted by Human Resources whenever an employee or applicant applies for a University Purchasing Card (P-Card) or whenever application for a position that handles case, credit or sensitive information is made. A credit check will be requested only for those individuals who gives consent to do so. No Purchasing Card will be issued to an employee who refuses consent to a credit review. If a position requires the use of a Purchasing Card and the applicant and/or employee does not provide consent for a credit report or fails to meet the University credit guidelines, termination of the job offer and/or employment may occur. A copy of the credit report will be provided to each applicant and/or employee upon request. An applicant and/or employee may provide written information to Human Resources explaining mitigating factors regarding an applicant and/or employee credit report. Human Resources will, in its sole opinion, determine if the information presented is

reliable evidence beyond the individual's control. Once Human Resources has completed its credit check, all credit report information will be kept separate from the employee's personnel file and will not be provided to the employee's department.

1.3.1d Driving Records

Positions that require that an individual drive a KSU vehicle, or regularly drive on behalf of KSU, will require a driving records review by Human Resources prior to the individual driving a university vehicle.

1.3.2 Conditions of Employment

The following actions are required of all employees as a condition of employment:

1.3.2a Completion of I-9

This form identifies an individual's legal right to employment in the United States and by law must be completed within three days of employment or the employee is subject to termination.

1.3.2b Direct Deposit of Paycheck

Kennesaw State University provides for the direct deposit of pay to most banks and credit unions anywhere in the country.

1.3.2c Federal and State Withholding Forms

The W-4 (Federal) and G-4 (State) forms indicate the withholding status of the employee and must be completed upon employment. The withholding status is used to determine the amount of federal and state taxes to be withheld by the employer.

1.3.2d Benefits Forms Completion

For benefits eligible employees only: optional benefit forms (for example, health insurance) must be completed within 31 days of the employee's benefits eligibility date with the University in order to participate in benefit programs.

1.3.2e Loyalty Oath

All employees of the University System of Georgia who receive public funds for services rendered as employees are required to affirm that they will support the Constitution of the United States and the Constitution of the State of Georgia.

The Loyalty Oath must be completed as required by the laws of the State of Georgia.

1.3.2f Security Questionnaire
The Georgia Security Questionnaire must be completed for all persons employed for 30 or more days.

The Sedition and Subversive Activities Act of 1953 (Georgia Law 16-11-5 et seq.) requires each new employee to sign, prior to employment in State Government, a questionnaire that is designed to establish that there are no reasonable grounds to believe that he/she is a subversive person. A subversive person is defined as one who commits, advocates, or teaches any act intended to overthrow or destroy the government of the United States or government of the State of Georgia by force or violence, or who is a knowing member of a subversive organization.

1.3.2g Transcripts
The University may require copies of transcripts to verify education and degrees awarded.

1.3.2h Ethics Training
The University System of Georgia mandates a three-pronged approach to ensure ethical conduct by faculty, staff, administrators, vendors, contractors and members of the Board of Regents. New employees are required to complete the training within 90 days of hire. The ethics training course is mandatory for all faculty and staff and must be renewed yearly.

1.3.2i Right to Know Training
Federal regulations require that all employees be trained on the new Hazard Communication Standard (HCS) label elements and new Safety Data Sheets. This training must be completed prior to orientation.

1.3.2j New Employee General Safety Orientation
This training about general safety operations at KSU must be completed immediately upon receipt of an employee's NetID and before starting regular job duties.

1.3.2k Clery Act Training
This course should be completed by new employees of Kennesaw State University and renewed annually, in accordance with the Jeanne Clery Act and Federal Department of Education Crime Awareness and Campus Security requirements.

1.3.2l Level 1 Mandatory Motor Vehicle Training
All faculty, staff, contractors, student assistants, volunteers, non-paid affiliates and any other party acting on behalf of Kennesaw State University and operating KSU owned motorized vehicles,

rental vehicles, lease vehicles or personal vehicles, regardless of vehicle ownership of frequency of use.

1.4 Orientation

Orientation is required of all employees. A general orientation program is regularly scheduled for all new regular and temporary faculty, staff and student assistants.

The orientation program provides critical information concerning policies, procedures and employee benefits.

In addition to attending the University orientation program, each new employee should meet with his or her supervisor, who will explain the responsibilities of the position, departmental policies and procedures.

1.4.1 Identification Card

A new employee will receive a KSU ID Card within 48 hours of his/her payroll information being added to the automated system. ID Cards can be obtained at the Card Services counter on the second floor of the Student Center.

The card is the bearer's official University identification and should be carried at all times. The card is not transferable and is the property of Kennesaw State University. It should be returned to the University upon termination of employment. Loss of an ID Card should be reported immediately to the Card Services Office.

1.4.2 Official Forms and Updates

New employees will be asked to complete forms for payroll and benefit purposes and will be responsible for the continuing accuracy of all information, including all criminal actions. As necessary, change of address, telephone number and tax withholding status should be requested online through HR Self Service on the Human Resources website.

1.4.3 Participation in Teachers Retirement System (TRS), Optional Retirement Plans (ORP) or Georgia Defined Contribution Plan (GDCP).

Application for membership in the Teachers Retirement System of Georgia (TRS) or one of the Optional Retirement Plans (ORP) must be completed. Employees eligible for the optional retirement plans have 60 days from their hire date to make an election. This election is irrevocable.

Georgia law requires that all state employees except student employees must be part of a public retirement system and participate in Social Security during their employment with Kennesaw State University.

The State of Georgia has created a retirement plan for temporary employees called the Georgia Defined Contribution Plan to comply with this legislation. The employee contributes 7.5% of gross pay per pay period to the plan. The deduction is an after-tax deduction. Employees who are contributing to the TRS or Employees Retirement System (ERS) with another employer are not eligible for Georgia Defined.

Temporary employees participating in GDCP may request a refund of all contributions to the plan after 60 days. The GDCP "Application for Refund of Contribution" form must be completed to receive the refund. This form can be found at: http://www.ers.ga.gov/plans/gdcp/formspubs/GDCP_Refund_App_PW.pdf

1.5 Provisional Period

1.5.1 Provisional Period for New Hires, Transfers and Rehires

Each new classified employee is required to serve the first six months of employment at Kennesaw State University in a provisional status. During this time, the new employee has the opportunity to evaluate the University as a place to work. Likewise, the supervisor will evaluate the employee's job performance. If the employee's work performance is not satisfactory, the employee will be notified in writing during the six-month provisional period and the employee may be terminated at any time during the provisional period without the right of appeal.

Police Department employees are subject to the same provisional employment requirement as other classified employees, except that the six-month provisional period will not begin until any person employed as a police officer has completed his/her mandated training for certification as a police officer. This special provision only applies to those Campus Safety employees for who specified training is mandated by state law and such training occurs after their employment.

Employees in the six-month provisional period are eligible for transfer or promotion within the University during that period only when granted permission by Human Resources.

Employees who have successfully completed a provisional period and who are transferring to or being promoted into a new position will not be subject to another provisional period.

Former employees who terminate and are rehired will be considered new employees and will have another provisional period.

1.5.2 Benefit Status during Provisional Period

Employees on provisional status, who are otherwise eligible, may enroll in benefit programs effective immediately, except where specified otherwise.

1.6 Reduced Hours

Occasionally, due to the needs of the University, employees may be required, with notification, to reduce their hours worked per week. In these instances, the employee will be given at least two weeks' notice when possible.

An employee may also request a reduction in hours. This request should be made to his/her direct supervisor. The supervisor should consult with Human Resources before answering the request.

1.7 Alternative Work Schedule

Kennesaw State University offers flexible scheduling to classified staff. Flexible scheduling offers creative approaches to completing an employee's workload

while promoting work/life balance. Standard working hours for the University are 8:00 a.m. to 5:00 p.m., Monday through Friday. All changes to this schedule require supervisor approval. (Alternative Work Schedule policy)

1.8 Termination Guidelines

Supervisors shall consult with Human Resources prior to initiating termination actions against a classified employee or administrative officer.

Upon approval from Human Resources, supervisors may notify the employee of the terms and conditions of termination. If immediate supervisory action is required, supervisors may suspend the employee and notify Human Resources.

Resignations, dismissals, suspensions with/without pay, shall be reported **without delay** to Human Resources. A Personnel Action Form, complete with an explanation of the reason for such action, must be recorded in the "Remarks" section.

Upon termination for any reason, an employee shall be compensated in a lump sum payment for all unused accrued annual leave (up to a maximum of 360 hours). If any portion of an employee's compensation is funded by a grant or other funding sources, the terms set forth by the grant or funding partner will determine if the payout of vacation hours is permitted.

Prompt submission of a Personnel Action Form is necessary to prevent employee over-payment. The Personnel Action Form is required to permit Human Resources to comply with the reporting requirements of the Georgia Department of Labor. When an employee quits without a written notice, a telephone call or e-mail to Human Resources, pending submission of the Personnel Action Form, will assist in preventing overpayments. If the date of termination of an employee is known in advance, it is requested that a Personnel Action Form be submitted at least five (5) days prior to the last day worked.

On the employee's last day, his/her supervisor is responsible for collecting all University property, including, but not limited to: ID and passwords, keys, parking permit, equipment, books and any other University property. A Separation Checklist has been developed to assist in this process.

1.8.1 Clearance/Exit Interview

Employees who terminate employment must complete the KSU exit process. It is the responsibility of the employee to assure the University that he/she does not have any outstanding obligations to the University. It also includes updating employee contact information.

The employee must delete any university records on personal devices (iPhones, iPads, Android devices, home computers, pen drives, et al) prior to separation.

If the exiting employee owes money to the University, Kennesaw State is authorized to hold accrued vacation pay to cover the obligation. If the exiting employee retains KSU property unauthorized, KSU retains the right to hold the final paycheck until it is returned. **Important: if the employee does not complete the clearance process, any regular pay and vacation pay that is due the employee may be delayed.**

A final paycheck will be deposited directly into the terminated employee's direct deposit account on record with payroll.

1.8.2 Reductions in Force

Some situations, such as lack of funding, lack of work, or reorganization may necessitate a reduction in force (RIF). When personnel reductions become necessary, affected employees will be given advance notice when possible so that they may seek employment elsewhere within or outside of Kennesaw State University.

Classified employees who are terminated, demoted, or otherwise adversely affected by reorganization, redirection, program modification or financial exigency, as approved or determined by the University President or designee (AVP HR), are not governed by the procedures described in the Grievance Process.

1.8.3 Rehire after Termination

Former employees who terminated for cause are generally not eligible for rehire. However, former employees who were terminated for cause may request Human Resources to review the case and determine eligibility for rehire.

1.8.4 Resignation

Resignation is voluntary relinquishment of employment by an employee. An employee should submit written notification of termination a minimum of two weeks prior to his/her last day worked to his/her supervisor, with a copy to Human Resources. Before leaving, the employee must return all University property including keys, I.D. cards, etc. See Clearance/Exit Interview, section 1.8.1.

1.8.5 Retirement

No staff member will be required to retire because of age.

The requirements for retirement under TRS can be found in the BOR Policy Manual, Section 8.2.8. Employees planning retirement are encouraged to discuss their plans with the Benefits Staff in Human Resources and their retirement provider well in advance of their planned retirement dates.

1.9 Whistleblower Protection Statute

Kennesaw State University recognizes that an ethical, efficient, and effective work environment is essential to our continuing to successfully accomplish our mission. As a result, we have always placed a high priority on assuring that each member of our university community has the opportunity and means to covey any matter that could compromise that environment. Reporting through your supervisory chain frequently produces the most thorough and timely resolution of a matter and is encouraged. However, other reporting avenues, such as the University Police, Human Resources, and Internal Audit, have been and continue to be readily available. In keeping with our efforts to expand alternatives for reporting matters of significance, there is Hotline reporting through a service provided by an independent company. This service is available 24 hours a day, 7 days a week, and allows you to voice your concerns, and to remain anonymous if you prefer.

Of special concern are fraud, waste, and abuse as well as harassment of any kind, given that they so directly impact our stewardship responsibilities and the well-being of individuals within our campus community. Yet, we would encourage you to report any other significant issues as well through any of the methods available to you. Click here to report a concern.

1.10 Allegations of Misconduct

Kennesaw State University is committed to actions and policies that support the responsible conduct of research, that provide for prompt and fair investigations of alleged misconduct, and that appropriately protect the work and reputations of any faculty, staff or student involved in such allegations or investigations. This policy applies to students only when acting in the course of their employment with the University.

This policy is adopted in compliance with various federal laws, regulations and policies dealing with misconduct in research including the Health Research Extension Act of 1985 (42 U.S.C. 289b) and Public Health Service (PHS) regulations to be promulgated pursuant to that Act. Also applicable is the National Science Foundation (NSF) regulation 45 CFR Part 689. These laws, regulations, and policies require universities receiving federal funds to establish administrative procedures for reviewing allegations of misconduct in connection with research. This policy pertains to all research and creative activity (including federally funded research) conducted at Kennesaw State University. The Vice President for Research and Dean of the Graduate College, acting as the University's Research Integrity Officer, is responsible for implementing this policy and for acting as liaison with external agencies and/or individuals making allegations.

This policy shall apply to Kennesaw State University (KSU) staff, instructional, administrative, and research faculty, and other members of the University's community including, without limit, graduate student research assistants,

graduate student teaching assistants, graduate student staff, undergraduate students employed in research or other scholarly activity, post-doctoral fellows and post-doctoral research associates, visiting faculty or staff, faculty or staff on sabbatical leave, adjunct faculty when performing University work, and faculty or staff on leave without pay. This policy applies to students only when acting in the course of their employment with the University.

2.0 CLASSIFICATION AND COMPENSATION

2.1 Compensation

Kennesaw State University's classification and compensation program for classified staff and administrative officers is administered by Human Resources. The program consists of a General Pay Plan and Broadband Structure that are designated to group positions that have similar duties, levels of responsibility, skills, and educational requirements into the same general levels of pay.

The pay rates for each job title are determined by the knowledge, training, skills and level of responsibility assigned to that position. In addition, every effort is made to ensure equitable salary ranges are in keeping with other universities in the University System of Georgia and similar positions in the local, regional and national markets.

2.2 B-Cat Classification System

The B-Cat system is based on general job categories that are linked to the Federal Integrated Postsecondary Education and Data System (IPEDS) job classifications. Every employee's job title is assigned a specific B-Cat Identification code. The B-Cat system uses a logic that assembles similar types of positions by function allowing institutions to "customize" their campus working titles and to build compensation programs appropriate to their own competitive job markets.

2.3 Pay Plan/Salary Structure

2.3.1 Broadband Structure

The Broadband Structure places job titles into a series of broad pay "bands", and "zones" within those bands. The Broadband Structure allows for certain flexibility as required to meet market conditions and to recognize education, skills and experience.

2.3.2 General Pay Plan

The General Pay Plan consists of pay grades that provide a means for the University to group comparable positions together into common ranges of pay based on job scope, complexity and other factors. The salaries for similar positions should fall within a designated range or pay grade. The ranges overlap, but each range specifies three guide points:

- A Minimum (all individuals in the classification should expect to make at least this pay level)

- A Midpoint (a benchmark for similar positions)
- A Maximum (the most that someone would expect to make for a position at that pay level and job classification)

2.3.3 Employment Classification
All employee job titles at Kennesaw State University are assigned a Fair Labor Standards Act (FLSA) status either exempt or non-exempt.

2.3.3a Exempt

Exempt status is assigned to positions that are not eligible for overtime pay as defined by the Fair Labor Standards Act (FLSA). Employees in executive, administrative, and professional positions are typically exempt under the FLSA and are paid a designated salary, regardless of the number of hours they work in a week. Such positions are hence "exempt" from the FLSA.

The University is not obligated under FLSA regulations to provide compensatory time to exempt employees. However, a supervisor may award compensatory time if it is determined that the situation warrants such an action. This practice should be consistent across the department and does not have to be on an hour-for-hour basis. Any time awarded but not used will not constitute a financial obligation to the University.

2.3.3b Non-Exempt

Non-exempt employees are subject to the provisions of the Fair Labor Standards Act (FLSA) and are eligible to be compensated for hours worked in excess of 40 hours per week. Employees that are assigned non-exempt status use the OneUSG time and attendance system to record all hours worked. If a non-exempt employee works more than 40 hours in the work week, they must be paid overtime or request compensatory time off at a rate of time-and-a-half. **Overtime must be approved in advance by the supervisor.** Failure to obtain advance approval for over time may result in disciplinary action.

2.4 Employment Opportunities Posting
Human Resources maintains a current listing of classified and temporary position vacancies on its website. Employees are encouraged to use the website as a resource for potential promotion or transfer opportunities. Interested employees may apply online for any position for which they are interested and qualified.

2.5 Minimum Hiring Standards
Minimum Hiring Standards (or MHS) are intended to help ensure comparable basic hiring standards for comparable positions across campus. A MHS is the

minimum threshold of education and experience required to perform a given job. An individual with an education level and/or experience below the stated MHS for a job title is not considered minimally "qualified" for the position and will not be selected for that position.

2.5.1 New Hire

The salaries of new employees are based on the classification of the position, market indicators, and the applicant's education, skills, and previous related experience. When an individual meets the minimum qualifications of the position, the salary is normally set at the minimum of the salary range.

However, if an individual has directly related prior job experience, or if the market warrants, the salary may be established above the minimum. Starting salaries are not normally set above the first quartile of the salary range for that classification. Consideration must also be given to internal equity across campus. Official offers of employment are extended by Human Resources.

2.5.2 Promotion

A promotion is the shift of an employee from one job title or position to another having more responsible duties or involving more skill (higher classification). To be promoted, the employee must meet the minimum job qualifications or MHS required by the new job title or position.

Employees can only be promoted during the fiscal year as a result of significant changes in assigned duties, the organizational structure, mission or funding of the department/project. The supervisor is responsible for completing all of the necessary information online through HireTouch.

The salary increase for promotions and reclassifications is at least the minimum of the pay grade assigned or up to 15% of the employee's current salary.

Employees in the six-month provisional period are eligible for promotion only when granted permission by Human Resources.

2.5.3 Transfer

An internal transfer is the movement of an employee from one position to another within the University usually within the same pay band or from a State of Georgia agency or the University System to Kennesaw State University.

Employees transferring to or from a State of Georgia entity or other institution in the University System of Georgia should consult with Human Resources regarding the transfer of their benefits and paid time. Employees transferring from one University System of Georgia

entity to another are required to serve an additional 6-month probationary period.

2.5.4 Employment in Multiple Positions

Employees may be employed in only one full-time position or classification within the University System of Georgia at any given time. If an employee wishes to accept another position in addition to a current position at the University or within the University System of Georgia, the following rules will apply:

- The combined work time for both positions cannot exceed 1.0 of full-time status (or 40 hours per week)
- Both positions must be the same FLSA classification, either exempt or non-exempt
- Acceptance of the second position must be approved by the employee's department head and Human Resources

2.6 Pay Adjustments

2.6.1 Merit Increases

The University recognizes and rewards individual performance by awarding merit increases. The funds available for merit increases vary from year to year depending upon budgetary constraints set by state legislators, the University System of Georgia and identified marketplace and economic conditions. The University System of Georgia develops merit increase guidelines that establish ranges for individual merit increases based on performance criteria. Kennesaw State University then determines how merit increases will be administered and awarded to employees.

2.6.2 Promotion

A promotion is an authorized reassignment from one position to another in a higher salary grade. Upon promotion, an employee is eligible for a salary increase. Promotion increases are determined on an individual-case basis within compensation guidelines.

2.6.3 Stipend

Additional compensation is appropriate when an individual is assigned, in writing, a major component of a job at a higher pay grade and is held accountable for the full scope of the job on a temporary basis (this includes temporary assignment necessitated by need.) All employees are expected to fill in for their co-workers during vacations and other short-term absences without additional compensation. Supervisors should determine if a stipend or additional temporary compensation is warranted. The amount of temporary compensation or a stipend should typically be up to 10% or as determined by Human Resources. Stipends generally should not continue for more than 12 months.

If a position has changed substantially over time or if substantive duties have been assumed that are beyond the scope of what generally might be considered for a position with that title, the position should be submitted for review to Human Resources. This process should be completed by the supervisor online through HireTouch.

2.6.4 Lateral Transfer

A lateral transfer is defined as a movement from one position to another at the same pay grade. A lateral transfer normally does not result in a change in salary since the assignments are in the same pay grade with the same salary range.

2.6.5 Demotion

A demotion is defined as a reassignment form one position to another position at a lower pay grade or salary range. A demotion can also be defined as a reassignment of duties to a lower level of pay or responsibility even if there is not a change in the employee's job title or position.

Involuntary demotions may occur if work is eliminated, abolished or reorganized, as a disciplinary action or if a staff member is unable to perform the work satisfactorily. The salary and classification for an individual who is involuntarily reassigned will be determined by Human Resources.

2.7 Job Evaluation Process

The University's job evaluation process is designated to maintain consistency in the utilization of various job titles. This process ensures that employees performing similar duties have the same or similar job titles with corresponding pay levels. The job evaluation process requires a comparative analysis of a position to determine if the current classification and/or compensation levels are appropriate. The job evaluation process also includes the review of required knowledge, skills and abilities needed to perform duties assigned to a position. A review of current market data may be required during the job evaluation process as a means of obtaining the University's goals in:

- attracting and retaining qualified individuals by matching job skills with the assigned position;
- ensuring that internal and external equity issues are addressed;
- encouraging professional growth for employees; or
- recognizing necessary knowledge and skills required for a position and ensuring that the employee is appropriately compensated for performing them.

2.7.1 Position Review Process

The position review process is the job evaluation process used for position reviews. The online process includes a formal review by Human Resources and is used to:

- classify a new position;
- review a vacant position; or
- review incumbent position for update of duties
- any other reviews (i.e. FLSA review, market analysis, etc.)

The position review process is part of HireTouch and supervisors may access the online position review from the https://jobs.kennesaw.edu/hrHuman Resources website.

2.7.2 Job Analysis and Job Audit

Generally, a position only needs to be reviewed if its duties have changed significantly over time, or if substantive new duties have been assumed that are beyond the scope of what generally might be expected for a position with that title.

If an employee believes their position should be reviewed for reclassification, the employee should discuss the possibility with their immediate supervisor. If the manager concurs, position review materials should be submitted online for review. Employees may be asked to help describe the duties they perform, so that the information fully reflects the current scope of responsibilities.

Human Resources will review the information provided and notify the manager of the classification review decision. Decisions may be appealed in writing to the Assistant Vice President, Human Resources within fourteen calendar days.

2.8 Administrative Salary Adjustments

Certain rare and exceptional circumstances may occur from time to time that warrant special salary adjustments. Such adjustments are not part of the normal compensation plan. Requests for special salary adjustments should be made to the Director of Human Resources. Human Resources will consult with the Division Vice President or President.

2.9 Deductions

2.9.1 Payroll Deductions

Each employee's paycheck will have specific deductions as required by law, Kennesaw State University regulation and/or at the employee's request as listed below.

2.9.2 Required Deductions

- Federal and State Income Taxes
- Social Security (FICA), if applicable

- Teachers Retirement System Contributions (6% of pre-tax gross pay) or
- Optional Retirement Plan Contributions (6% of pre-tax gross pay)
- Georgia Defined Contribution Plan (7.5% of after-tax gross pay – for Temporary Employees Only)

2.9.3 Optional Deductions (This list is not all inclusive):

- Parking
- Tax-Sheltered 4.3(b) retirement contributions
- 457 Deffered Compensation Plan
- Insurance premiums
- Annual Fund campaign gifts
- Flexible Spending Account contributions (Unreimbursed Medical or Dependent Care)

All temporary employees employed by KSU are exempt from Teacher Retirement System contributions and Optional Retirement Plan contributions and are not eligible for insurance benefits, but are required to contribute to the Georgia Defined Contribution Retirement Plan unless already contributing to or receiving benefits from either TRS or ERS with another employer.

2.10 Garnishments and Withholding

The University considers the acceptance and settlement of just and honest debt to be a mark of personal responsibility.

The University is required by law to accept and process garnishments served by officials of the court. Failure to meet financial obligations causes discredit to the University. Repeated instances of default in the payment of debt, after appropriate counseling, are sufficient grounds to terminate employment from the University System of Georgia.

The University is authorized to hold paychecks and/or deduct from regular paychecks or vacation pay amounts owed by its employees for any fine, fee, penalty or other financial obligation to the institution.

2.11 Pay Periods

2.11.1 Time Reporting

Provisions of the Fair Labor and Standards Act require that non-exempt employees record hours worked per work week per pay period. The official workweek for all non-exempt employees begins at 12:01 a.m. Saturday and ends at 12:00 a.m. the following Saturday. Hours worked in excess of 40 per week will be compensated at one and one-half times the hourly rate or compensatory time off.

OneUSG, the system of record required by the Board of Regents, is used to record and track time and attendance. Non-exempt staff must record hours worked each day in OneUSG as well as request sick,

vacation and holiday hours taken in order to be paid. Exempt employees must use the OneUSG software to report exception time (sick, vacation, etc.) to be paid.

Falsification of or failure to record time may result in failure to get paid and/or disciplinary action including termination.

ALL TIME RECORDS MUST BE APPROVED BY BOTH THE EMPLOYEE AND AN AUTHORIZED REVIEWING AUTHORITY.

2.11.2 Paychecks

Non-exempt employees are paid bi-weekly, with payments made every other Friday. Any adjustments to pay that are not reporting to Payroll Services in time for processing in the current payroll will be reflected on the next paycheck. Insurance premiums are generally deducted out of the first two paychecks of each month but will be adjusted by payroll as needed to collect any amounts due.

Monthly staff is compensated on the last working day of each month that includes premium deductions as needed.

2.11.3 Direct Deposit

It is mandatory that all employees activate direct deposit for their payroll transactions. Direct deposit will ensure that your net pay is deposited into your selected account(s) on the date of payment. This mitigates the risk associated with lost or late paychecks that often require a week or ten days to be replaced.

Kennesaw State University provides for the direct deposit of pay to any participating bank or credit union in the country. Direct deposit enrollment or changes can be completed online using the OneUSG Employee Self-Service portal.

If you are unable to obtain a bank account for direct deposit, please contact Human Resources for assistance.

For more information please refer to: http://www.ksupayroll.com/direct-deposit.html

2.11.4 Report of Absence

Exempt and non-exempt staff must record and report all absences through OneUSG.

3.0 Benefits

3.1 General Benefits Information

Kennesaw State University offers benefits eligible employees the opportunity to participate in various benefit plans provided by the Board of Regents and/or Kennesaw State University, that include but are not limited to health insurance, dental insurance, vision insurance, life insurance, accidental death and dismemberment insurance, disability income insurance, life insurance, dependent life insurance, pre-tax saving flexible spending accounts (parking, health, dependent care) and retirement plans.

The University contributes toward the premiums for health, basic life and matches retirement contributions based upon terms set by the Georgia Legislature.

Human Resources provides each eligible employee with complete descriptions and comparisons of the available benefit plans, along with the respective monthly premiums. For specific information on the available benefit plans, please refer to the Human Resources webpage.

3.2 Benefits Eligibility

Employees must be appointed to a position that has an anticipated duration of at least six months and is at 75% FTE (30 hours) or more to be considered "benefits eligible". Employees must be appointed to a regular position scheduled for 50% FTE (20 hours) or more in order to participate in the TRS or ORP retirement plans.

3.2.1 New Employees

New benefits eligible employees may enroll in available benefit plans within the first 30 days of employment without a medical underwriting review.

Employees who do not enroll in benefit plans within the first 30 days of employment must wait until the annual open enrollment period to enroll or until a qualifying event takes place (see section 3.8.1). Employees should be aware that some plans only offer enrollment within the first 30 days of employment that may be their only opportunity to enroll in certain benefits. Additionally, enrollment in certain benefit plans during the Open Enrollment period may be based upon the approval of a medical underwriting review.

3.2.2 Eligible Dependents

Eligible dependents include the spouse and dependent children up to age 26 for medical insurance. Dependents with proof of full-time students at an accredited institution may be covered up to age 26 under the dental and vision plans. If a dependent becomes medically disabled prior to the age of ineligibility, he/she may continue as a dependent with medical certification. A marriage license, birth

certificate, or other document establishing a dependent relationship is required as a condition of dependent coverage.

3.2.3 Documentation

Documentation verifying proof of eligible dependents status must be provided to HR within 30 days of hire date in order for the dependent(s) to be covered under the plan(s).

3.2.4 Domestic Partners

Domestic partners of employees are eligible to enroll in certain benefit plans offered by Kennesaw State University. An affidavit of domestic partnership is required. This form can be obtained from Human Resources or https://web.kennesaw.edu/hr/sites/web.kennesaw.edu.hr/files/Dom_Partner_Affidavi t.pdf.

3.3 Health Insurance

Employees who are benefits eligible have 30 days from their benefits eligibility date to select a medical plan from the various plans offered. Every fall the University offers an open enrollment period during which employees may change their healthcare plan elections and/or levels of coverage.

The University pays approximately 70% of the cost of healthcare coverage. The employee must pay the remaining portion of the premium through payroll deduction. Premiums for medical insurance are withheld from the payroll check on a pre-tax basis.

3.4 Dental Insurance

The University offers two dental plans with two networks (PPO and Premiere) through Delta Dental. Both plans cover preventative services, like routine checkups and cleanings, as well as basic and major services. However, there are important differences in annual benefits maximums, orthodontia coverage levels, and the percentage of payment for major services. For more details refer to: https://web.kennesaw.edu/hr/content/2012-dental- plan-comparison-chart

3.5 Accident Insurance Travel & Identity Theft

All regular classified employees under age 70 who are benefits eligible may elect supplemental accidental death and dismemberment insurance. The employee pays 1.0% of the monthly insurance premium and the premium is withheld from the payroll check on an after-tax basis. This insurance includes medical travel assistance and identity theft assistance.

3.6 Life Insurance

3.6.1 Group Life Insurance

The University pays the full cost for $25,000 of basic life insurance for all benefits eligible employees.

3.6.2 Supplemental Life Insurance

Eligible employees may purchase supplemental life insurance 1 to eight times annual salary. The premiums are based on the age of the insured and the amount of coverage selected. This is optional coverage and is paid entirely by the employee with after tax premiums.

3.6.3 Dependent Life Insurance

Eligible employees may also insure their dependents (spouse and children). Spouse Supplemental Life Insurance is available in $10,000 increments up to $500,000. Child Supplemental Life Insurance is available in $5,000, $10,000, and $15,000. Child Supplemental Life Insurance is offered for dependent children between the ages of six months and age 26. If a dependent becomes medically disabled prior to the age of ineligibility, he/she may continue as a dependent with medical certification. Premiums are deducted after tax.

3.7 Disability Income Insurance

Employees may choose to participate in short-term and/or long-term disability income insurance. These voluntary plans allow employees to receive a benefits if employees become ill or injured and are unable to perform their job duties for an extended period of time.

Short-Term Disability is for any covered employee who experiences an illness or injury that lasts more than 14 calendar days as certified by a physician. Coverage is 60% of weekly salary and benefit payments are made accordingly. Coverage is extended as long as the employee continues to be certified disabled by a physician up to 11 weeks.

The Long-Term Disability plan is designed to replace a portion of your pay when you are disabled. Benefits begin after a waiting period of 90 days and continue as long as you are disabled up to your Social Security Retirement Age. If your claim is approved, Metlife will provide a monthly benefit of 60% of your pre-disability wages up to a maximum monthly benefit of $15,000. Participating employees may use time from the Donated Sick Leave to supplement or replace any time taken without pay.

Premiums for optional coverage are deducted after-tax.

3.8 Section 125 Plan – Flexible Spending Accounts

Kennesaw State University participates in a Section 125 Plan as authorized by the Internal Revenue Code.

Employee health, dental, vision and flexible spending account premiums are deducted on a pre-tax basis and are not subject to federal tax, state tax and/or FICA. The choices made by a new employee or during the annual open enrollment period must remain in effect for the entire plan year (January 1 – December 31), unless the employee has a mid-year qualifying event (refer to section 3.8.1).

The annual open enrollment period normally occurs during the months of October and November with coverage dates effective January 1 of the following calendar year.

3.8.1 Qualifying Events for Mid-Year Changes

The IRS regulation, under Section 125, has strict rules regarding the operation of these plans. Exceptions are permitted under IRS rules when a member has a mid-year qualifying event. Employees are required to notify Human Resources within 30 days of the qualifying event and complete the appropriate forms to make mid-year changes. Some examples of mid-year qualifying events include:

- Change in marital status
- Birth or adoption of a child
- Death of a covered dependent
- Loss of eligibility status by a covered dependent
- Change in employment status that affects eligibility for coverage
- Loss or gain of healthcare coverage eligibility under Medicare or Medicaid
- Change in residence to a location outside of a healthcare plan's service

3.9 Continuing Benefit Plans at Termination

Terminating employees will retain insurance benefits through the end of the month in which termination occurs, provided the full premiums have been paid. Under the Consolidated Omnibus Budget Reconciliation Act (COBRA), employees may elect to continue medical, dental, vision, and/or flexible medical spending account for up to 18 months. In special instances, the 18-month period may be extended. The flexible spending medical account terminates at the end of the calendar year after employment ends. COBRA election must be made within 60 days from the date COBRA notification is received by the employee. Payment of COBRA premiums must be paid in full before coverage is reinstated.

3.9.1 Disabled Status

If a qualified beneficiary is determined to be disabled under Title II or XVI of the Social Security Act at the time employment ends and the plan administrator is notified within 60 days, the qualified beneficiary may elect benefit continuation for up to a total of 29 months following the termination of employment.

3.9.2 Dependents

A spouse of an employee whose coverage ends due to divorce or a child who reaches the maximum age for coverage as a dependent may continue coverage for thirty-six (36) months. Election must be made within sixty (60) days from the date COBRA notification is received.

Payment of COBRA premiums must be paid in full and on time each month or COBRA coverage will be discontinued.

3.10 Tuition Assistance Program (TAP)

The tuition assistance program is available to full-time, benefits eligible employees of the University System of Georgia who have successfully completed at least six (6) months of continuous employment in a benefits eligible position as of the date of the TAP application deadline for the desired academic semester. Employees who wish to take advantage of the TAP program must qualify as a student prior to registration.

Employees are required to register for classes during the TAP user registration for the teaching institution they are attending. Employees who pre-register may not be eligible to receive the TAP benefit and may need to pay for classes out of pocket or by other means. For a list of registration dates for each institution, visit USG TAP Employee Registration Dates (https://www.usg.edu/hr/benefits/tap_dates).

Employees must complete a TAP application for each semester that they wish to use the TAP benefit. Applications are submitted through the online TAP portal and must be received no later than midnight of the submission deadline.

Employees may seek approval to enroll in up to nine (9) academic semester credit hours for each of the three designated semester periods: fall semester, spring semester, and summer semester. For more information, visit the complete policy reference.

3.11 Professional Liability Insurance

The University, as a unit of the University System of Georgia, provides limited liability insurance protection to its employees while in the conduct of the business of the University. This insurance covers employees' legal liability to others for personal or bodily injury and property damage resulting from actions or inactions of an employee of the University System of Georgia acting within the scope of his or her employment. The Office of the Attorney General will defend the employee from such claims under most circumstances.

3.12 Retirement Plans

All employees, excluding student employees, must be part of a state sponsored retirement program. Benefits eligible Kennesaw State University employees are required to enroll in either the Teachers Retirement System of Georgia (TRS) or the Optional Retirement Plan (ORP) within 60 days of employment. This election is irrevocable. ORP eligible employees who do not make an election within 60 days default into the Teachers Retirement Plan of Georgia. (Refer to section 3.12.3 and 3.12.4).

Temporary employees are required to participate in the Georgia Defined Contribution State Plan. When employment ends with Kennesaw State University, the temporary employee, if they so choose, may request a refund of all the contributions made to the Georgia Defined Contribution Plan.

3.12.1 Social Security

Terms, conditions, requirements, reservations, benefits, privileges and other conditions of Title II of the Social Security Act, as amended, apply to all employees of the University System except those specifically excluded under the agreements with the Employee Retirement System of Georgia.

3.12.1a Employees Covered by Social Security

All employees eligible for the Teachers Retirement System of Georgia and Optional Retirement Plan are covered by Social Security.

3.12.1b Employees Subject to the Medicare Portion of Social Security Only

The following employees are subject to the Medicare portion of Social Security only:

- Temporary, seasonal or intermittent employees who are employed at an hourly rate of pay, including part-time instructors
- Student assistants, under certain circumstances
- Graduate assistants, under certain circumstances
- Employees working less than half-time (19 hours per week or less)

13.12.1c Employees Not Covered by Social Security

Non-resident aliens may be exempt from Social Security deductions, in accordance with their visas. All non-resident aliens are required to undergo a KSU tax analysis prior to claiming exemption from social security.

3.12.2 Georgia Defined Contribution Plan

Temporary employees contribute 7.5% of their wages to the Georgia Defined Plan that is the State equivalent of Social Security. For more information, visit the complete policy reference.

A contributing member who terminates employment and meets the criteria may apply for a refund of accumulated contributions and interest. To apply for a refund, login to your ERS online account and select Request a Refund to initiate the refund process. If you do not have an online account, click here and then click the Register button.

3.12.3 Teachers Retirement System of Georgia

The Teachers Retirement System of Georgia is a defined benefit plan. Employees enrolled in this plan are required to make contributions as a percentage of gross salary. The contribution rate may change each fiscal year. Employee contributions are deducted from salary before federal and state income taxes (pre-tax dollars) are paid on contributions. Employees pay FICA (OASDI and Medicare) on contributions just as on any other salary. Federal and State of Georgia income tax is deferred until the account is withdrawn or retirement benefits are received.

Employees who leave the University before retirement are advised to investigate their options regarding TRS funds. All withdrawals of funds (not including rollovers) are subject to additional tax and penalties. The form to request a refund of contributions is available online at https://www.trsga.com/active-member/contribution-withdrawals/.

3.12.3a Vesting

Vesting in the Teachers Retirement System occurs after ten (10) years of service. Service may also be purchased for teaching in the public schools of Georgia, State of Georgia employment, maternity leave and study leave. Up to five years credit may be obtained for service in the armed forces of the United States during periods of national emergency. After six years of Georgia service, credit may be purchased for out-of-state teaching in public schools or colleges. The formula for the purchase of out-of-state credit is one year of out-of-state service for each additional year of Georgia service up to a maximum of ten years.

3.12.3b Eligibility for Retirement

Eligibility for retirement is governed by the Teachers Retirement System of Georgia and the Board of Regents. The Board of Regents policy reference can be found in the Board of Regents of the University System of Georgia Policy Manual, Definition of a University System of Georgia Retiree and Eligibility for Retirement. Section 8.2.8: (https://www.usg.edu/policymanual/section8/C224/#p8.2.8_retirement_and_post_retirement)

3.12.3c Early Disability

Permanent disability retirement is available at any age if the TRS member has at least 9 ½ years of service.

3.12.4 Optional Retirement Plan (Regents Retirement Plan)

The Optional Retirement Plan is available to exempt faculty and staff. Employees enrolled in this plan must make contributions as a percentage of gross salary. Employee contributions are deducted from salary before federal and state income taxes (pre-tax dollars) are paid on the contributions. Employees pay FICA (OASDI and Medicare) on contributions as with any other salary. Federal and State of Georgia income tax is deferred until the account is withdrawn or retirement benefits are received.

Contributions may be distributed among various funds offered. Members may change fund selections on a regular basis as per fund rules. Members may change retirement companies once per quarter.

Employees eligible for the optional retirement plan have 60 days from their hire date to make an election. If no election is made, participation will default to the Teachers Retirement System Plan. This election is irrevocable.

3.12.4a Vesting

Vesting in the Optional Retirement Plan is immediate. Since vesting is immediate, the total funds, including the state's contributions, remain in the member's name for his or her retirement.

If the member becomes permanently and totally disabled or dies, all monies in the fund, including the State's contribution and appreciation or depreciation of the funds, would be made available to the member or the named beneficiary.

3.12.4b Eligibility for Retirement

Eligibility for retirement is governed by the Board of Regents. The Board of Regents policy reference can be found in the Board of Regents of the University System of Georgia Policy Manual, section 8.2.8 – Definition of a University System of Georgia Retiree and Eligibility for Retirement. (https://www.usg.edu/policymanual/section8/C224/#p8.2.8_retirement_ and_post_retirement)

3.12.5 Voluntary Supplemental Retirement Accounts

Kennesaw State University provides voluntary retirement programs to eligible employees. These programs allow employees to set aside additional funds for retirement on pre-tax basis. After-tax Roth option is available in the 403(b) plan.

3.12.5a Tax-Sheltered Plans [403(b)]

Most employees* are eligible to participate in a voluntary tax-deferred plan offered through Kennesaw State University under provision 4.3(b) of the Internal Revenue Code (IRC). This plan allows participants to direct a portion of their income, on a pre-tax or after-tax basis, into any of a number of investment vehicles such as annuity contracts and mutual funds.

Employees make the full contribution, via salary reduction (there are no employer contributions). Employees may enroll or change their elections for the 4.3(b) plan at any time, including during the annual benefits open enrollment period.

A variety of retirement companies offer investment options and information is available from Human Resources.

3.12.5b Deferred Compensation Plans [457(b)]

Kennesaw offers a voluntary deferred compensation plan under provision 457 of the Internal Revenue Code (IRC). This plan allows employees to defer a portion of their income, on a tax-sheltered basis, into any of a number of investment vehicles. Taxes are deferred until the money is withdrawn. Unlike a 4.3(b) plan, withdrawals at times other than retirement do not carry an additional penalty. Employees make the full contributions, via salary reduction (there are no employer contributions). Employees may enroll or change their elections for the 457 plan at any time, including during the annual benefits open enrollment period.

Employees may participate in both the 4.3(b) and the 457 plans.

*Tax treaties generally disallow non-immigrant foreign nationals who work in the U.S. from excluding such contributions from their taxable income, so there is not tax advantage to participation.

3.13 Flexible Spending Accounts

Kennesaw State University offers programs that allow individuals to set aside funds on a pre-tax basis for certain healthcare, dependent care and transportation related expenses. Depending upon the program, employees may reduce their salaries by an amount up to $5000 per year.

3.13.1 Healthcare Flexible Spending Account

The healthcare flexible spending account may be used to cover the cost of medical, dental and related expenses that are not otherwise paid by other insurance (i.e., medical, drugs, dental plan co-pays, and deductibles and qualifying out-of-pocket medical & dental expenses that fall outside your plans' coverage). Employees may enroll within 30 days of being hired or after a qualifying event or during the annual benefits open enrollment period. To participate in the Healthcare Spending Account, employees must re-enroll each plan year.

Note that setting up a Healthcare
FSA can save employees substantial tax dollars on predictable medical costs. However, employees are forewarned - **any unspent funds left in the account after the end of the plan year are forfeited per IRS rules.** The plan year is defined as January 1 through December 31. Expenses incurred during the plan year can be submitted for reimbursement until March 31 of the following year.

3.13.2 Dependent Care Flexible Spending Account

The dependent care flexible spending account may be used to cover the cost of qualifying childcare, eldercare or care of other legal dependents. Employees may enroll within 30 days of being hired or a qualifying event, or during the annual benefits open enrollment period.

Note that setting up a Dependent Care FSA can save employees substantial tax dollars on predictable costs. However, employees are forewarned - **any unspent funds left in the account after the end of the plan year must be forfeited per IRS rules.**

Under the law, the combined dependent care contributions of both parents **cannot** exceed the maximum allowable election set by the IRS (currently %5,000.00).

13.3.3 Transportation & Parking Spending Account

This is a monthly program that allows employees to pay for work-related transportation costs (i.e., parking) on a pre-tax basis. Employees have the option of increasing or decreasing their deduction for transportation expenses at any time. The effective date of the change will be the 1st of the following month that the form is received in Human Resources.

3.14 Georgia High Education Savings Plan

Employees may participate in the Georgia Higher Education Savings Plan through payroll deduction. The program, known as a 529 Plan, allows employees to set aside money for higher education expenses - for their children, grandchildren, or other beneficiaries of their choice (including themselves). Under current law, any earnings grow tax-free in the account and are tax-free when withdrawn and used for education purposes. Employees who participate in the program may also be eligible for a state tax credit for such contributions.

Participation in the Georgia plan does not mean that the beneficiary must attend college in Georgia. The fund may be used for qualified higher education expenses at accredited postsecondary institutions across the country. Accounts can be opened with as little as $15 and have high allowable total limits (more than $200,000). A variety of investment options are available. To learn more about the program, visit: https://www.path2college529.com/index.shtml or visit the Human Resources website.

3.15 Appealing Denied Benefit Claims

Denied benefit claims must be contested directly through the benefits provider such as Blue Cross/Blue Shield.

3.16 Employment After Retirement

When an individual retires from the University System of Georgia and is receiving benefits from the Teachers Retirement System, the Employees Retirement System or the Regent's Retirement Plan, he/she shall not be reemployed by the University System without the prior approval of the Board of Regents. When an employee has retired from the University System of Georgia, he/she may be reemployed by the University System of Georgia under the following conditions:

1. The reemployment of a University System of Georgia retiree must be approved by the Board of Regents;
2. A rehired retiree must have a minimum break of one month between t he effective date of his/her retirement and the effective date of his/her re-employment;
3. The work commitment of a rehired retiree must be less than half-time (i.e., less than 50%);
4. The salary that is paid to a rehired retiree must be:
    a. less than 50% of the annual benefit-base compensation amount that he/she was earning at the time of his/her retirement, with consideration for the average merit increase percentages that have been applied since the employee retired, or;
    b. Less than 50% of the average compensation for the position into which

the retiree is being hired based on the institutions' existing com pensation plan, or, if not applicable, the average compensation of existing or previous incumbents, or;

c. Less than 50% of a reasonable market competitive rate for the position into which the retiree is being rehired as determined by the institutional chief human resources officer.

5. The salary that is to be paid to a rehired retiree must be consistent with his/her work commitment.

4.0 Vacation, Sick Leave and Leave of Absence

4.1 Time-Off Benefits

These benefits are provided to eligible employees of the University in recognition of their need to be off the job for a variety of reasons, including rest and enjoyment, jury/witness duty, illness, etc. The University provides a generous and comprehensive time-off benefits program.

4.1.1 Holidays

Kennesaw State University observes 12 official paid holidays each year. The holiday schedule is available on the Human Resources website. Student assistants, graduate assistants, part-time instructors and temporary employees are not eligible to receive holiday pay. Official University holidays are:

- New Year's Day
- Martin Luther King Jr. Day
- Memorial Day
- Independence Day
- Labor Day
- Thanksgiving Day
- Friday following Thanksgiving
- Winter Holiday (five days in December)

To receive pay for the holidays, an employee must be in pay status the day before and the day after the holiday. A terminating employee will not be paid for any official holiday occurring after the last working day of his or her employment.

A normal workday at Kennesaw is eight hours per day and holiday pay will be for eight hours and prorated for part-time employment. Hours credited for pay (holiday, sick, vacation), but not actually worked, will not be used in computing overtime/compensatory time.

4.1.2 Vacation

Vacation time must be approved in advance by the supervisor before it may be taken.

4.1.2a Eligibility

Regular, full-time and part-time benefits eligible employees are eligible to accrue vacation hours.

Full-time staff will accrue ten hours vacation per month for the first five years of employment. After the completion of the 5th year of service, vacation will accrue at 12 hours per month. Staff with ten or more years of service will accrue at 14 hours per month. Administrators and Administrative Faculty accrue 14 hours per month regardless of years of service.

Regular employees working 30 hours per week, but less than 40, earn and accrue vacation hours in an equivalent ratio to their percentage of time employed. Temporary employees, including student assistants, graduate assistants, part-time instructors, and regular employees who work less than one-half time do not earn or accrue vacation time.

An employee must be hired on or before the 15th of the month to accrue leave for that month. Leave is accrued on the last working day of the month. An employee must have a sufficient leave balance from prior months to cover the hours taken through the last day of the vacation.

Otherwise, the employee will be in a “Leave Without Pay Status”.

4.1.2b Carryover of Unused Vacation Days

Unused vacation time will rollover each year; however, on December 31 of each calendar year, each employee's leave record shall be adjusted to reflect no more than 45 days (360 hours) of accrued vacation/annual leave.

4.1.2c Terminal Vacation Pay

All unused, accrued vacation/annual leave, not to exceed 45 days (360 hours), shall be paid to an employee upon his/her termination from employment. If any portion of an employee’s compensation is funded by a grant or other funding sources, the terms set forth by the grant or funding partner will determine if the payout of vacation hours is permitted.

An employee who terminates on or after the fifteenth of a month shall accrue vacation/annual leave for that month.

4.1.2d Record of Earned Vacation

Accrued vacation and sick time can be viewed by logging in to the OneUSG Employee Self Service portal.

4.1.2e Transfer to another unit within the University System of Georgia

Employees transferring to another USG institution with accrued vacation of 20 or fewer days (160 hours) must transfer to the new unit all accrued vacation. For employees with accrued vacation of greater than 20 days (160 hours), an employee may elect one of the following options:

- Transfer of the total accrued vacation balance, not to exceed 45 days (360 hours); or
- Receive payment from the former institution of accrued vacation leave in excess of 20 days (160 hours). The total accrued vacation leave for which the employee may be paid shall not exceed 25 days (200 hours)

An employee must transfer all accumulated sick leave if there is no break in service.

4.2 Sick Leave

4.2.1 Eligibility

Regular full-time and part-time benefits eligible employees are eligible to accrue sick leave hours. Full-time employees accrue eight hours of sick leave per month. Sick leave may be granted at the discretion of the institution and upon approval by the supervisor for an employee's absence for any of the following reasons:

- Illness or injury of the employee;
- Medical and dental treatment or consultation;
- Quarantine due to a contagious illness in the employee's household;
- Illness, injury, or death in the employee's immediate family (spouse, parent, brother, sister, child, stepchild, grandparent, grandchild, parent-in-law, son-in-law, daughter-in-law, foster parent or legal guardian, or domestic partner) requiring the employee's presence.

An employee must be hired on or before the 15th of the month to accrue leave for that month.

Leave is accrued on the last working day of the month. An employee must have
a sufficient leave balance from prior months to cover the hours taken

through the last day of the absence. Otherwise, the employee will be in a “Leave Without Pay” status.

4.2.2 Annual Allowance and Accumulation

For all regular full-time employees, sick leave shall be accumulated at the rate of one working day per calendar month of service.

Benefited part-time employees accrue at an equivalent ratio to their percentage of employment (i.e., half time employees accrue at half the rate of full-time employees). There is no limit to the amount of sick time that an employee may accrue and carry into the next calendar year.

Temporary employees, including student assistants, graduate assistants and part-time instructors do not earn or accrue sick time.

4.2.3 Reporting Absences Due to Illness

Employees are expected to report all absences due to illness or injury directly to their supervisors or department heads as soon as possible and should indicate probable length of absence so that schedule adjustments may be made.

Employees absent for prolonged periods should communicate with their supervisors weekly unless on approved leave of absence. Supervisors should contact Human Resources when an employee is out for longer than five days because of illness or injury or immediately if the condition is serious, so that appropriate measures for leave of absence can be made.

4.2.4 Physician's Statement

If an employee is out of work due to illness for five consecutive days, a physician's statement is required upon return to work. Under some circumstances, supervisors may require an employee to provide a physician's statement for sick leave absences for less than five days.

4.2.5 Physician's Return to Work Certification

Supervisors reserve the right to request a release from a physician to allow an employee to return to work.

Such certification is also requested of employees returning under the Family Medical Leave Act (FMLA) or workers' compensation injury (refer to sections 4.3 and 4.6).

4.2.6 Donated Sick Leave Program

The purpose of the Donated Leave Program is to provide a means for University employees to donate paid sick leave to a shared leave pool. The pool of donated leave is available to be used by fellow University employees who donate to the pool who are eligible for and require leave while experiencing a life-threatening or emergency medical condition. Use of leave from the pool keeps eligible employees from taking leave without pay during their time of crisis. Complete Donated Leave guidelines are on the Human Resources website in the Benefits section.

4.2.7 Sick Leave without Pay

Any employee unable to return to work after exhausting all accumulated sick leave and accrued vacation leave may request sick leave without pay for a period not to exceed one year. This additional sick leave may be granted at the discretion of Human Resources.

If additional sick leave is approved, the employee will have the option to continue his/her group insurance benefits while on leave. The institution will continue to pay its share of the cost for such period, and the employee must continue to pay his/her share of premiums.

If not already exhausted, this sick leave will run concurrent with FMLA. Beyond FMLA guidelines there is no job protection offered for this type of leave.

During an unpaid leave status, vacation and sick leave benefits will not continue to accrue.

4.2.8 Sick Leave for Terminating Employees

A terminating employee shall not be paid for sick leave earned but not taken. However, employees retiring may use accumulated sick leave to earn additional service time with Teachers Retirement System.

4.3 Workers' Compensation

All University employees are covered by state Workers' Compensation laws that may provide medical and income benefits if you are injured on the job. Workers' Compensation also provides benefits to your dependents if you die as the result of a job-related illness or injury.

4.3.1 Work Related Injuries

Reporting work related illnesses and/or injuries in a timely manner is not only important for the wellbeing of our employees, but also to assist in preventing further incidents whether or not medical treatment is needed. Because of this, the following steps must be completed in a timely fashion. Additional detailed information is available at https://hr.kennesaw.edu/benefits/on-job-injuries.php.

- Emergency Medical Care Needed:
  If immediate medical attention is needed, call 9-1-1 or Public Safety at 470-578-6666 or extension 6666.
  - The following facilities are recommended for emergency medical care:
    Life-Threatening: Urgent Care:
    Kennestone Hospital Wellstar Clinic
    677 Church Street 3805 Cherokee Street
    Marietta, GA 30060 Kennesaw, GA 30144
    70-793-5000 770-426-5665
- The supervisor should immediately contact Human Resources at 470- 578-6030 or extension 6030 to inform them of the situation.
- After seeking medical treatment, the employee must complete an Employee Report of Injury/Illness within 24 hours of the incident if possible using the university's online incident reporting tool in EtQ Reliance. (https://kennesaw.etq.com/prod/rel/#/app/auth/login)
- Human Resources will file the workers' compensation claim and make initial contact with the Workers' Compensation Managed Care Organization (WC/MCO). Human Resources will provide the employee with the worker's compensation claim number and the MCO's contact information. The employee will contact the MCO to provide further information regarding their injury/illness and to receive information regarding the AMERISYS, INC. network of providers.
- Following any emergency medical treatment, employees are required to receive all subsequent medical care through the AMERISYS, INC. network of providers. Failure to use the network physicians will jeopardize payment of medical bills under

workers' compensation and the employee may be personally liable.

Non-Emergent Illness/Injury:

- If immediate medical attention is not needed, the employee should notify their supervisor immediately of the illness/injury and complete an Employee Report of Injury/Illness within 24 hours of incident using the university's online incident reporting tool in EtQ Reliance (https://kennesaw.etq.com/prod/rel/#/app/auth/login). Failure to do so may result in the loss of Workers' Compensation benefits. Once completed, the report should be submitted to their supervisor.
- Human Resources will file the workers' compensation claim and make initial contact with the Workers' Compensation Managed Care Organization (WC/MCO). Human Resources will provide the employee with the worker's compensation claim number and the MCO's contact information. The employee will contact the MCO to provide further information regarding their injury/illness and to receive information regarding the AMERISYS, INC. network of providers. further information regarding their injury/illness and provide information regarding the AMERISYS, INC. network of providers.
- Employees are required to receive all medical care through the AMERISYS, INC. network of providers. Failure to use the network physicians will jeopardize payment of medical bills under worker s' compensation and the employee may be personally liable.

4.3.2 Return to Work from Workers' Compensation Leave

An employee may not return to work without a physician's release to duty. When an employee returns to work, it is the responsibility of the supervisor to inform Human Resources immediately. Late notification of return to work status may result in incorrect payroll reporting for the employee.

4.4 Personal Leave

At the discretion of the President or designee (Assistant Vice President of Human Resources), personal leave without pay for a period of up to one year may be approved on a case-by-case basis. Such approved personal leave allows the employee the right to elect to continue his/her group insurance benefits with institutional participation in the cost. No vacation or sick leave is accrued during an unpaid personal leave.

Employees must exhaust all earned vacation and sick leave before personal leave is used.

4.4.1 Duration of Leave
Any leave, except that charged to accrued vacation, that is anticipated to extend beyond two weeks in duration, requires the supervisor to notify Human Resources as such leave must be approved by the University and may be subject to legal guidelines. A minimum of ten days advance notice is requested when possible.

4.4.2 Benefits During Leave
Approved paid leave results in benefits continuation including continued accrual of sick and vacation. Approved unpaid leave allows employees to retain insurance benefits. However, employees on unpaid leave will not continue to accrue vacation or sick leave.

4.4.3 Unapproved Personal Leave
An employee not at work must be in an approved leave status. When an employee is absent from work and has not made arrangements to be on official leave, disciplinary action up to and including termination may occur. Unapproved leave will be unpaid or charged to accrued vacation at the supervisor's discretion and approval from Human Resources.

4.5 Administrative Leave
Administrative leave is a leave of absence initiated by the University to deal with special circumstances in which it is desirable to continue an employee's association with the University for the period of the leave. Administrative leave may be with or without pay and carries no promise of future re-employment.

Administrative leave requires the approval of the President or designee (Assistant Vice President, Human Resources).

4.6 Family and Medical Leave
The Family Medical Leave Act (FMLA) provides eligible employees with up to 2 6 weeks of unpaid, job protected leave each rolling 12-month period. A rolling 12-month period is defined as 12 months from the date of first absence.
To be eligible, the employee must be employed for at least one year and have worked at least 1,250 hours over the previous 12 months.

4.6.1 Family Leave Entitlement
Employees may request Family leave for the following events:

- Birth of a child
- Adoption of a child
- Family member call to active duty
- Employees who have a spouse, parent or child who is on or has been called to active duty in the Armed Forces when he/she experiences a "qualifying exigency"
- Serious health condition of employee's child, spouse or parent
- Serious health condition of employee

"Serious health condition" means an illness, injury, impairment, or physical or mental condition that involves:

- any period of incapacity or treatment connected with inpatient h ospital care (such as an overnight stay), hospice or residential medical care facility;
- any period of incapacity requiring sporadic absences from work, school
  or other regular daily activities that also involves continuing treat ment by (or under the supervision of) a health care provider; or
- continuing treatment by (or under the supervision of) a health care provider for a chronic or long-term health condition that is incurable or so serious that if not treated would likely result in a period of incapacity.

Spouses who are both employed by the University are jointly entitled to a combined total of 12 weeks of family leave for the birth or placement of a child for adoption or foster care, and to care for a child or parent (but not parent "in law"), who has a serious health condition. Leave for birth, adoption or foster care placement must conclude within 12 months of birth or placement.

Under some circumstances, employees may take FMLA leave intermittently— that means taking leave in blocks of time or by reducing the normal weekly or daily work schedule. Where FMLA leave is for birth or placement for adoption or foster care, use of intermittent leave is subject to approval by Kennesaw State University. FMLA leave may be taken intermittently whenever it is medically necessary to care for a seriously ill family member or because the employee is seriously ill and unable to work.

Employees who have a spouse, parent, child or who have been named next of kin for a service member who incurred a serious injury or illness on active duty in the Armed Forces may take up to 26 weeks of leave to care for the injured service member.

4.6.2 Notice and Certification

Employees requesting FMLA must complete the Kennesaw State University FMLA request form and submit it along with the University System of Georgia's FMLA Medical Certification form to Human Resources. The Medical Certification form includes a section for the health care provider to verify the existence of a serious health condition. In the case of a foreseeable leave, an employee is required to give at least 30 days notice prior to beginning FMLA. In the event that the leave is not foreseeable, the employee is required to advise Human Resources as soon as practical. Whenever possible, the employee requesting FMLA should set up an appointment with

Human Resources to provide required paperwork and make preparations regarding compensation and benefits.

The employee may be required to obtain a second or third medical certification, at Kennesaw State University's expense.

4.6.3 Paid vs. Unpaid Leave
When taking FMLA leave, employees may choose to use either accumulated sick and/or annual leave based on the following criteria.

Sick leave **must** be used when FMLA leave is due to the employee's own serious illness or to care for designated family member. Once all sick leave has been exhausted, Kennesaw will charge leave to vacation unless the employee elects to freeze the vacation leave at any given point. The request to freeze annual vacation leave must be documented with a signed memo from the employee to Human Resources. Once the annual vacation leave has been exhausted or if accrued vacation leave has been frozen, the remainder of the FMLA leave will be in an unpaid leave status.

4.6.4 Benefits Coverage during Leave
During the period of FMLA leave, an employee may retain health, dental, vision and life benefits under the same conditions that applied before the leave began. If an employee's share of insurance premiums cannot be deducted from his/her pay, the employee will be required to pay his/her share of insurance premiums each month while on leave. Failure to pay the employee share of the insurance premiums will result in loss of coverage.

4.6.5 Job Restoration
Upon return from FMLA leave, the employee will be restored to his/her original position or to an equivalent job with equivalent pay, benefits and other employment terms and conditions.

The employee's use of FMLA will not result in the loss of any employment benefit that the employee earned or was entitled to before using FMLA leave. In an unpaid leave status, however, the employee will not continue to accrue vacation or sick leave benefits.

4.6.6 Return from Leave
Employees must notify Human Resources of their return to work date at least five (5) business days in advance of the return to work date. A statement from
the employee's physician certifying that the employee is physically a ble to return to work is to be turned in to Human Resources prior to or on the employee's first day back to work. The employee is responsible for ensuring that the documentation is delivered to Human Resources either in person, via e-mail or

facsimile. Upon receipt of the statement, the employee will be added to payroll if he/she was on leave without pay. In some cases, the employee may be required to provide a fitness-for-duty certificate prior to being restored to active status.

If an employee wishes to return to work prior to the expiration of FMLA leave, notification must be given to Human Resources at least five (5) business days prior to the employee's planned return. Human Resources is responsible for notifying the employee's supervisor of the employee's status. The employee must provide medical certification that he/she is able to return to work earlier than expected.

4.6.7 Extension of Leave

An employee requesting an extension of FMLA leave due to the continuation, recurrence or onset of his/her own serious health condition or of the serious health condition of the employee's spouse, child or parent must submit a request for an extension in writing to Human Resources. The maximum amount of FMLA leave that an employee may take during a rolling 12-month period is 12 weeks (or 26 weeks in the case of an injured service member). The employee is required to notify Human Resources as soon as it is determined that he/she will not be able to return from leave as originally planned. Human Resources is responsible for notifying the employee's supervisor of the employee's status.

4.7 Military Leave

4.7.1 Definition of Military Leave

Military duty, for the purpose of these regulations, includes any military duty in the service of the State of Georgia or the United States. This includes schools conducted by the armed forces of the United States.

4.7.2 Duration of Military Leave

Regular benefits eligible employees are entitled to up to 18 days of leave with pay while engaged in the performance of military duty and while going to and from such duty during normal working hours. The maximum length of military leave with pay is 18 workdays (144 hours) in any one federal fiscal year or continuous period. The maximum leave time without pay allowable cannot exceed five years. In order to receive the annual military leave with pay, the employee must provide a copy of his/her orders to Human Resources.

4.7.3 Benefits during Military Leave

At the expiration of maximum paid military leave time (18 days), continued absence by the employee shall be considered as military

leave without pay. The employee may elect to exhaust accrued vacation leave hours prior to going on an unpaid leave status.

During the period of Military Leave Without Pay, an employee may retain health, dental and life benefits under the same conditions that applied before the leave began. If an employee's share of insurance premiums cannot be deducted from his/her pay, the employee will be required to pay his/her share of insurance premiums each month while on leave. Failure to pay the employee share of the insurance premiums will result in loss of coverage.

Any regular employee who is required to undergo a physical exam for Selective Service or military service is eligible for paid military leave if the exam is scheduled during normal working hours. The employee must submit the documentation of the exam request to his/her supervisor.

4.7.4 Return from Military Leave

The employee must provide advance notification to the department and Human Resources of the return-to-work date. Upon receipt of the notification, the individual will be reinstated on payroll if the individual was on leave without pay. Employees may be required to provide fitness-for-duty certification prior to being restored to active status.

Failure to return from leave for reasons other than a continued serious health condition may require the individual to repay the employer's contributions to healthcare premiums during the period the individual should have returned.

4.8 Maternity Leave

Medical absences due to pregnancy and childbirth will be considered as any other medical leave time and FMLA and Sick Leave provisions apply. See Sick and/or Family and Medical Leave (FMLA) for further information."

4.9 Educational Leave

The President, Provost or Assistant Vice President, Human Resources, may grant educational leave without pay to full-time employees who have at least one year of service at the time of requesting leave. Educational leave may not exceed one year at a time and is to be used for obtaining a degree or professional certification. Such approved leave allows the employee the right to elect to continue his or her group insurance benefits at the same employee rate the individual paid through payroll deduction. The employee will be required to pay his/her share of insurance premiums while on leave each month.

4.10 Death in the Family

Benefits eligible employees who have a death in the immediate family may be allowed to use accrued sick leave for absences related to the

death. Sick leave granted to employees in excess of five days for a death in the employee's immediate family requires a memorandum from the supervisor explaining the circumstances. The immediate family in this instance includes the employee's spouse, parents, children, siblings, stepchildren, grandparents, grandchildren, foster parents and legal guardian, in-laws, and domestic partners.

All other employees may be granted time off due to a death in the family. However, since such employees do not accrue sick or vacation leave, the leave will be unpaid.

4.11 Court/Jury Duty

Court/Jury duty leave with pay is granted to regular employees for the purpose of serving on a jury or as a witness. Such leave is granted upon presentation of official documentation from the appropriate court. A subpoena from the appropriate court qualifies as documentation for serving as a witness. A receipt from the appropriate court stating the number of days served qualifies as documentation for serving on a jury.

Employees may retain juror or witness fees paid by the court. An employee appearing in court related to a personal matter will
not be granted leave with pay but may take vacation, if available. An employee serving as an expert witness must take vacation time, and it must comply with the "Outside Activity Policy" (See Section 1.1.7).

4.12 Voting

Employees are encouraged to exercise their constitutional right to vote in all federal, state and local elections. If election polls are not open at least two (2) hours before or two (2) hours after an employee's normally scheduled work shift, sufficient leave time, consisting of a two-hour block, will be granted to permit the employee to vote.

4.13 University Closing

In the event of inclement weather or any emergency that jeopardizes the safety of employees, the President or designee of the University may declare leave with or without pay. In the case of inclement weather, the following details the procedures for advising faculty, staff, students and the metro community when weather conditions require closure or delays the opening of the University. These procedures will apply to both weekday and weekend activities. The communications protocols for closures or delayed openings of the University during periods of inclement weather are described below:

- If snow or ice falls during the night, the decision to close or delay opening will be communicated through four media: television, radio, the voice mail of the Office of University Relations, and the Kennesaw State University web page.
- If snow or ice conditions develop during regular daytime working hours and a decision is made to cancel classes, release non-essential staff, or close offices, the University community will be notified via broadcast announcements, and also through television, radio, the voice mail of the Office of University Relations and the Kennesaw State University webpage.

5.0 Workplace Practices

5.1 Work Schedules

The normal work week for a full-time, regular classified employee consists of 40 hours per week. Employees may, on occasion, have to work more than 40 hours per week. In these instances, advance notice will be provided when permissible. Non-exempt employees will be compensated for the hours worked in excess of 40 hours per week in accordance with the Fair Labor Standards Act. Work hours and days are determined by the needs of the office and will be communicated to the employee by the supervisor. There may be an instance when the needs of the University dictate a change in schedule. This change will be communicated to the employee by the supervisor with at least two weeks' notice where possible.

The University reserves the right to change work schedules as necessary to meet changing departmental needs.

5.1.1 Attendance

Each employee, exempt and non-exempt, is expected to adhere to their scheduled hours. If the employee is unable to report to work as scheduled for any reason, the employee should promptly notify his/her supervisor. It is not sufficient to leave a message with a co-worker nor should the notification be made by a friend or family member except under emergency situations. Such notification should be made as far in advance as possible. Failure to give the

appropriate notification may result in disciplinary action up to and including termination.

5.1.2 Time Reporting for Non-Exempt Employees

Provisions of the Fair Labor and Standards Act (FLSA) require that non-exempt employees record the hours worked per pay period. The official workweek for all non-exempt employees begins at 12:00 a.m. Sunday morning and ends at 11:59 p.m. the following Saturday. OneUSG time reporting must reflect hours worked for each workweek of the pay period and should include all absences taken in the pay period.

Falsification of, or failure to use, OneUSG time reporting may result in failure to get paid and/or disciplinary action including termination.

ALL TIME RECORDS MUST BE APPROVED BY BOTH THE EMPLOYEE AND AN AUTHORIZED REVIEWING AUTHORITY.

5.1.3 Time Reporting for Exempt Employees

It is the responsibility of the exempt employee to report all absences in the month in which they were taken in OneUSG. Supervisors are responsible for reviewing and approving absences and holidays for exempt employees.

ALL TIME RECORDS MUST BE APPROVED BY BOTH THE EMPLOYEE AND AN AUTHORIZED REVIEWING AUTHORITY.

5.1.4 Breaks

Breaks are a privilege granted by each individual supervisor and are not a right. The needs of the job must be satisfied before breaks can be granted. If the work situation permits, the supervisor may authorize a.m. and p.m. breaks of up to 15- minutes in duration. Employees on break may leave the work area.

In departments where it is necessary to have someone on duty at all times, it is the employee's responsibility to ensure that work assignments are covered to the approval of the supervisor. Therefore, in some areas, breaks are not possible.

Employees may not forego breaks to accumulate extra time off in the future or to make up for tardiness or previous absence. Breaks may not be skipped in order to leave early or come in late. These rest breaks are with pay.

5.2 Employee Records

HR maintains for each employee a personnel file that contains vital employment information. To ensure that personnel records are up to date, it is the employee's responsibility to promptly notify Human Resources through HR Self Service of any changes in name, home address, telephone

number and emergency contact. Notification of change in dependents, marital status or beneficiary changes can be initiated through HR Self Service, but will require additional documentation for completion.

5.2.1 Access to Employee Records

The Georgia Open Records Act is a state statute that requires that public records be open and available for inspection within three (3) business days of receipt of the request. Any Open Records Act requests received by a university official (faculty, staff or administrator) must be responded to within three (3) business days or the university official may be penalized under the provisions of the law. There are some exceptions to the Open Records Act (e.g., medical records, student educational records, etc.). Any requests received should be forwarded immediately upon receipt to the KSU Office of Legal Affairs for response on behalf of the University. https://hr.kennesaw.edu/policies/requesting-records.php

5.2.2 Disclosure of Information

As a service to employees, Human Resources will furnish third parties outside the University dates of employment and an employee's title or position. In instances where payroll information is requested (e.g., salary information for the purpose of obtaining a car loan), Human Resources will confirm but not furnish salary. If the requesting party requires specific information they will be advised that such information will only be made available with the written consent of the employee.

5.2.3 Updating Information

In order to respond to possible emergencies and to provide employees with important notices relating to salaries, benefits and other matters, it is important that the University have current and accurate records. Employees must keep their personal data current with Human Resources via HR Self-Service and as necessary provide written documentation to Human Resources.

5.3 Employee Health and Safety

The prevention of accidents and the promotion of safety are the responsibility of everyone in the University community.

Everyone is encouraged to be alert and report any unsafe practices and conditions that may present an imminent danger to individuals or property. Employees should report these types of conditions to their immediate supervisor or to the Office of Environmental Health and Safety.

Environmental Health and Safety provides support to the University in all areas of environmental and chemical safety including chemical and other

hazardous materials. If there are any concerns, employees are encouraged to contact Environmental Health and Safety.

5.3.1 Emergency Treatment

In the event of a serious or life-threatening emergency, call 470-578-6666 for immediate assistance by Kennesaw State Public Safety.

5.3.2 Campus Safety and Security Fire and Emergency Services

Each Kennesaw State University building has fire evacuation plans posted in common areas. All employees are encouraged to become familiar with the escape routes for all buildings and floors and the locations of fire extinguishers, hoses and alarms. In the event of a fire or evacuation, every employee should follow the fire safety evacuation route and vacate the premises until the officials in charge declare the premises safe to enter. Exits and areas around fire extinguishers must be kept clear at all times. Periodic fire safety inspections and drills are held to test equipment and procedures.

For questions about fire safety, contact the Office of Environmental Health and Safety at 470-578-3321.

5.3.3 Kennesaw State University Police

The Kennesaw State University Police and Department of Public Safety provide a variety of services to the University community including assistance to stranded motorists, safety escorts and crime prevention programs. The Police phone number to contact in the event of an emergency is 470-578-6666. Non-emergency situations can be reported by dialing 470-578-6206.

5.3.4 Georgia Public Employees Hazardous Chemical Protection and Right to Know Act of 1988

The State of Georgia Public Employee Right to Know Act ensures that all public employees are accorded certain rights regarding hazardous chemicals in their workplace. Employees have both a need and a right to know the identities and hazards of the chemicals they use on the job.

In December of 1993, Kennesaw State University employed a Right to Know coordinator and developed a Hazardous Chemical Protection Communication Plan document. The goal of this Right to Know program is to inform all employees of Kennesaw State University about the chemical hazards in their work areas and how to protect themselves against these hazards.

The Kennesaw State University Right to Know coordinator is employed in the Department of Environmental Health, Safety and Risk Management. For further information, please call extension 3321 or visit the department website.

5.3.5 EAP/Faculty and Staff Assistance

An Employee Assistance Program (EAP) is available at no cost to Kennesaw State University faculty and staff who are enrolled in the Metlife Long-Term Disability Plan. The EAP offers confidential consultations, assessments and short- term counseling for a variety of issues ranging from work-related concerns to personal difficulties that affect everyday life.

The EAP has offices throughout the state, and their counselors are not University employees.

For additional information and assistance, call the EAP at 800-511-3920 or online at: https://www.mhn.com/members.html, **company code: metlife2** or consult the Human Resources website.

5.4 Use of University Services and Property

The University strives to maintain the highest standards of personal and business ethics and professional conduct. As an employee, you are required to do the same. Your daily activities on behalf of the University should always be carried out in an ethical and legal manner and conflicts of interest should be avoided.

5.4.1 Kennesaw State Stationary

Kennesaw State University stationery is intended for University business and must not be used by employees for personal or non-University correspondence.

5.4.2 Telephone and Fax Usage Policies

KSU's official Telecommunication Policies pertaining to telephone and fax machines can be found at: https://policy.kennesaw.edu/

5.4.3 Mail and Packages

For procedures for university mail go to: https://postalservices.kennesaw.edu/

5.4.4 Visitors

It is expected that employees will not receive personal visitors during working hours on a regular basis.

5.4.5 Children in the Workplace

The University cannot accommodate children of employees and students on campus during normal operating hours. Children are welcome to make brief visits and to attend scheduled events.

5.4.6 Business Activities

Employees who supplement their earnings by the promotion or sale of products and services do so entirely on their own initiative and without implied approval or endorsement by the University.

All such activity, including sampling, soliciting orders and deliveries must be conducted entirely outside of working hours and entirely outside of University property.

5.4.7 Pets

Health, safety and courtesy reasons preclude the presence of pets in the workplace except for approved service animals.

5.4.8 KSU Cards

Employees are required to obtain a KSU ID Card as soon as possible upon employment from the Card Services Office located in the Student Center.

The KSU ID Card is the official Kennesaw State University card that is used for identification purposes and for access to many facilities on campus and discounts off campus. A list of these benefits can be found at: http://hr.kennesaw.edu/perks/index.php.

The KSU ID Card is the property of Kennesaw State University and upon leaving the University employees are expected to return the card to their immediate supervisor.

If the card is lost or stolen, employees must immediately contact Card Services. The recipient of the card is responsible for all usage of the card prior to proper notification to Card Services. After the card has been reported missing to Card Services, a replacement card can be issued. There is a replacement fee for lost, stolen, damaged or unreturned cards.

5.4.9 University Equipment

Electronic mail, voice mail, fax machines and copiers should be used for official Kennesaw State University business only. Employees should understand that electronic mail and voice mail messages are not secure and therefore should not be assumed to be private.

5.4.10 Computer Usage

Kennesaw State University equipment including computer hardware and software are valuable assets. They should be used for official University business only. Although every effort is made to secure the privacy of each authorized user, messages or files stored on the computer or system network should not be considered to be entirely private or secure. Under the Georgia Open Records law, it is possible that information that is stored on a computer system, including electronic mail, would be available for inspection by any member of the public. Furthermore, Kennesaw State University reserves the right to have access to any information stored on a University owned computer or network. Under no circumstances may

software be copied or installed on a Kennesaw State University computer if such copying or installation would violate any copyright or licensing agreement.

Any employee in violation of this policy may be subject to disciplinary action up to and including termination as well as possible legal action. Sending blanket emails to the University is prohibited. See: https://policy.kennesaw.edu/ for additional Information Systems and Technology policies.

5.4.11 Check Cashing and Cash Advances

Faculty and staff in good standing may cash personal checks without prior authorization (two-party checks are not accepted) by presenting a valid KSU ID at the following locations on campus:

KSU Bookstore: Limit: $50.00

Bursar's Office:

Limit: $100.00 (personal checks in excess of $100.00 may be permitted but will require prior approval from the Bursar or an assigned representative)

Cash Advances

Cash advances are issued to employees for one of two purposes: travel expenses or the purchase of items for the University. It is important to note that any advances not cleared within 60 days of the issue date will be collected as a payroll deduction.

Additional information on cash advance policies and procedures may be found on the Financial Services website.

5.4.12 Food Services

Faculty, staff and students may deposit funds on their KSU ID cards to use for food purchases in a general declining balance account. This can be accomplished at the K-Cash Terminals located around campus (Student Center near the Bursar's office, Sturgis Library, 4th floor Burruss, 3rd floor Social Sciences, 1st floor Science, 2nd floor English, and 2nd floor Bagwell). You may also manage your account online (add funds, see transactions, suspend use) at https://eacct-kennesaw-sp.transactcampus.com/eaccounts/AnonymousHome.aspx. For information about this program, call 470-578-6154.

For your convenience, Culinary Services offers a K-Cash program that allows employees to charge meals against a pre-paid account using a KSU ID. K-Cash funds may be used to purchase food at any of KSU's retail venues, as well as entries into the meal plan buffet. Funds may be added through the online K-Cash Manager at https://eacct-kennesaw-sp.transactcampus.com/eaccounts/AnonymousHome.aspx, or by

visiting one of seven K- Cash Terminals across campus. Visit https://taloncard.kennesaw.edu/ for terminal locations. Guest cards may also be purchased using the K-Cash terminals.

5.4.13 Office of Development – Development & Fund-Raising Guidelines

There is an ongoing need for private support to enhance the educational programs and facilities and to support the students and faculty at Kennesaw State University. Gifts from individuals and private organizations represent a significant source of otherwise unmet financial need, and are regularly called upon to provide resources for the campus. In order to maximize gift support from these constituents for KSU's prioritized needs and goals and preserve institutional relationships, clear procedures have been put in place to coordinate development activities. These procedures are not intended to be restrictive, but rather to ensure efficient and effective fund raising by all involved. Individuals or groups who have a demonstrated need and desire to engage in fund-raising activities are encouraged to do so under the guidelines of this policy.

The Office of Development serves as the official representative of the university on all matters related to private giving, and is responsible for clearing, coordinating and conducting efforts to increase KSU's private support. The staff works closely with the KSU Foundation, which is the 5.1/c/3 organization created to receive and manage gifts on behalf of the University, as well as the KSU Alumni Association.

The KSU Foundation recognizes the University's policy on coordinated development and its importance to effective fund raising. The KSU Foundation's Policy Manual contains additional operational procedures concerning gift acceptance, pertaining especially to gifts-in-kind and planned gifts. Individuals contemplating fund raising activities in those areas may wish to contact either the Office of Development or the KSU Foundation Office to familiarize themselves with such policies and procedures. See: http://www.kennesaw.edu/foundation/ for additional information.

5.4.14 Copy/Print Services

For printing and copying needs, faculty and staff have access to any of the administrative copy/print multifunction devices deployed around the campus, including departmental offices. Employees can make copies using their KSU ID at any copier and may print to any appropriately networked Ricoh printer. https://copyprint.kennesaw.edu/

5.4.15 Distribution Center

The KSU Distribution Center is charged with managing furniture, fixtures, equipment, Bookstore inventory, and mail that moves to, from, and within the campus community. It provides a wide variety of services to the campus community, including, Surplus Management, General Receiving, and Bookstore Receiving. Visit the Distribution Center's website at https://crd.kennesaw.edu/ for important information about services and policies.

6.0 Staff Development

6.1 Performance Reviews

Kennesaw State University has established a system of performance evaluations for all classified, exempt and non-exempt employees. These evaluations may be used for making decisions regarding transfer, promotion, demotion, retention, supervisory assistance, employee training and development and for consideration in salary determination. All staff are evaluated by the immediate supervisor or department head on an annual basis no less frequently than in 12-month intervals.

6.2 Training and Development Programs

The University recognizes that training and development programs improve individual and organizational performance and help the University achieve its overall institutional goals. Employees should develop, with their supervisors, plans to enhance skills and prepare for continually evolving responsibilities in their positions.

Since professional development is part of all employees' performance expectations, supervisors should plan for and allow release time from work for training programs determined to be mutually beneficial for employees and the University. Such release time should be granted to employees in a fair and equitable manner, regardless of experience, educational background, or job title.

Many work-related training programs are provided on campus by the Center for University Learning and other campus departments. Training programs offered by the Center are posted on the Center for University Learning website. The Center uses an online registration system and employees must have supervisory approval to register for a class that meets during working hours.

The Center can also assist departments in coordinating in-house departmental training opportunities to meet their specific needs. For additional information on training opportunities offered by the Center, refer to: https://cul.kennesaw.edu/ or call extension 3450.

6.3 Continuing Education Courses

The mission of KSU's College of Continuing and Professional Education (CCPE) is to provide quality lifelong learning opportunities that

enrich the personal and professional lives of individuals in a respectful and responsive environment. To assist in that mission, the College of Continuing and Professional Education reduces the fee charged to KSU regular, classified employees (working 30 hours or more) on most courses. Additional costs associated with a class (including textbooks and supplies) are the responsibility of the registrant. KSU employees are admitted to classes on a space available basis. Requests to take advantage of this benefit must be authorized by the employee's supervisor. For more information regarding this benefit, contact the college education representative at 470-578-3108 or refer to our webpage and complete the request form https://hr.kennesaw.edu/.

6.3.1 Eligibility for Continuing Education Courses

All regular, classified employees (working 30 hours per week or more) are
eligible to take CE courses at a reduced cost. Temporary employees are not eligible for course fee waivers.

6.3.2 Registration

In most circumstances, courses should be taken outside of normally scheduled working hours. However, if the course is not offered at that time and the employee wishes to take the course during working hours, the employee must have the approval of his/her supervisor. The employee will be expected to take vacation or make up any time spent in a non-work-related class taken during working hours.

7.0 Internal Problem Resolution

7.1 Employment Relation Problem Resolution

Employees are encouraged to participate in an informal resolution process. The informal resolution process may be utilized by consulting with an employee's supervisor, Human Resources, Employee Assistance Program (EAP), the University's Ombudsperson or as the situation dictates, with EEO and the Office of Diversity and Inclusion. For info on Faculty procedures see http://kennesaw.edu/handbooks/faculty/section4_4.php#3

In the event that any of these processes are not successful, the employee may initiate a formal complaint through Human Resources or EEO and the Office of Diversity and Inclusion.

7.1.1 Staff Grievance Procedure

The Staff Grievance Procedure is available to any classified employee working at least .5 FTE (full-time equivalency) who has completed the provisional employment period. The Staff Grievance Procedure is not available to temporary employees, faculty, students or non-University employees (consultants, contractors, etc.).

The Staff Grievance Procedure may be used by an eligible employee to bring a grievance about:

- an action or decision that is inconsistent with a specific Universit y rule, regulation or policy;
- a suspension, demotion, and/or
- an involuntary termination (involuntary terminations do not include resignation or retirement).

The Staff Grievance Procedure may not be used to bring a grievance about:

- performance evaluations
- flexible work options or decisions
- reductions in force
    - salary and classification determinations
    - organization of a department or allocation of its resources
    - termination of grant funding
    - non-renewal of a limited term position

Grievances like concerns or complaints regarding allegations of harassment or discrimination on the basis of the criteria listed under the EEO Office should be referred directly to the Kennesaw State Office of Diversity and Inclusion.

7.2 Discrimination or Harassment Complaint

Kennesaw State University is committed to creating and maintaining a community in which students, faculty and staff can work together in an atmosphere free of discrimination and discriminatory harassment. The University encourages employees to avail themselves of the resources available through the EEO and the Office of Diversity and Inclusion.

The Office serves as a resource for potential complainants and provides an investigatory function for discrimination grievances. One of the responsibilities of the Office is to uphold the laws that prohibit discrimination in education and employment. It is illegal to discriminate against a person because of that person’s national origin, race, color, sex, religion, age or disability.

8.0 Employee Performance and Conduct

8.1 Performance Policy

Kennesaw State University supports a consistent, continuous and communicated performance management process. As required by Board of Regents policy, a formal, written performance evaluation is to be completed at least once every fiscal year. The performance evaluation must include an evaluation of the employee's adjustment, capability, productivity, efficiency and potential for departmental and institutional development. Merit-based

compensation should be based upon performance as measured by the performance evaluation instrument.

8.2 Performance Expectations

Supervisors are required to provide employees with a job description, related performance expectations, and a copy of the evaluation instrument. The job description should be reviewed with the employee to ensure that it accurately reflects current responsibilities and expectations. The Kennesaw State University Performance Evaluation Form should be used by the evaluator in evaluating his/her direct staff.

8.3 Performance Evaluations

The job performance of each Kennesaw State University staff member should be appraised:

- During the provisional period (first six months of employment) for new University employees; and
- Once a year for Regular Classified Employees outside of their provisional period

Performance Evaluations are completed using the online performance evaluation system. Completed evaluations, signed by two levels of supervision (immediate and secondary) and the employee, are to be submitted to Human Resources and will become part of the employee's personnel record.

Employees have 30 days from the date of signature on the evaluation to include any comments with the evaluation.

8.3.1 Interim Evaluation

Supervisors are encouraged to give continuous and ongoing feedback to employees as it relates to their performance. Supervisors are also encouraged to conduct at least one interim performance evaluation during the evaluation period. This evaluation does not have to be formal but should provide feedback to recognize and reinforce positive performance, to identify areas needing improvement and to develop an improvement plan when necessary.

The annual performance evaluation should not be the first and only time each year that an employee hears feedback on his/her performance.

8.4 Conduct Guidelines

Each employee is responsible for their own behavior. Common sense, good judgment, cooperation and appropriate personal behavior are required of all Kennesaw State University employees.

8.4.1 Example of Inappropriate Conduct

Across Kennesaw State University, there are areas of common conduct that are unacceptable. The following are examples of inappropriate behavior:

- Falsification of work, job duties or records
- Working under the influence of alcohol or an illegal substance
- Inappropriate handling or disclosure of confidential informatio n or records
- Submission of falsified claims under the University's medical or other benefit plans
- Excessive absenteeism or lateness
- Sleeping on the job
- Failure to maintain professional standards or conduct with clients, co- workers and students
- Neglect of duty or failure or refusal to perform job-related duties and assignments
- Illegal manufacture, possession, use, sale or distribution of drugs, or use of alcoholic beverages on University premises
- Refusal to cooperate with a Kennesaw State investigation
- Larceny, misappropriation or unauthorized possession or use of property belonging to Kennesaw State University or any employee or visitor
- Creating unsafe conditions or contributing to such conditions by act of omission
- Misappropriation of departmental or organizational funds
- Unauthorized possession, copying or use of the University records to unauthorized persons
- Threatening, intimidating, harassing or coercing of another employee
- Gambling on University premises or while engaged in University business
- Violation of the University non-discrimination or sexual harassment policy

The conduct listed above is not an exhaustive list of inappropriate conduct. In addition, employees participating in such conduct will be subject to disciplinary action including termination. In cases of inappropriate conduct supervisors may immediately suspend the employee, send them home or contact Public Safety. Supervisors may not terminate an employee without Human Resources approval.

8.4.2 Progressive Discipline

The Progressive Discipline process is designed to be constructive and corrective and to promote employee success. It gives employees the information necessary to understand what aspect of

work performance, attendance and/or behavior is unacceptable, identifies the improvements that are expected and provides the opportunity for employees to demonstrate the expected improvements. The goal is to improve performance, attendance or behavior of employees and to assist employees in taking ownership of their performance, attendance or behavior.

It is the responsibility of the employee to adhere to the expectations outlined by the supervisor and by the university.

It is recommended that all employees be provided an opportunity to go through the progressive discipline process; however, there may be circumstances that warrant immediate termination. In addition, there is no required number of instances that a supervisor must warn or reprimand an employee before termination is warranted.

8.4.2a Progressive Discipline Steps

It is recommended that department management document all steps of the corrective discipline process as they occur, as well as warnings of further corrective action if the unacceptable performance and/or behavior is not corrected. In each step, department management is advised to state the next step to be taken if the performance does not improve. However, in cases of serious misconduct, the employee may be immediately terminated or suspended from the work force.

When an employee's performance or behavior is unsatisfactory, a progressive process is strongly advised. The steps involved in the process may include verbal discussion, written warning, suspension without pay or termination. Any disciplinary step may be omitted depending upon the severity of the incident.

Verbal Disciplinary Action

The initial disciplinary action should be verbal whenever possible. The discussion should be firm but fair and should ensure that the employee clearly understands the established standards and expectations with respect to the unacceptable performance or behavior.

A written record of the date and content of such discussions should be maintained in the appropriate files in the department.

Written Disciplinary Action

Verbal disciplinary action of an employee that does not result in the needed improvement or if the initial situation indicates a need for stronger action, the next step is a formal discussion, followed by a written disciplinary warning to the employee. The written warning outlines the undesired behavior, states expectations, and lists consequences if issues continue.

Human Resources is available to assist department management with the warning letter. Copies of the warning letter should be maintained in the appropriate departmental file and a copy sent to Human Resources to be placed in the official employee file.

Suspension Without Pay Action

Suspension without pay follows a verbal or written disciplinary warning if the desired results have not been accomplished or in situations where employee's conduct warrants more serious consequence. The length of the suspension should depend upon the facts of each case, (e.g., type and severity of the behavior, previous work record of the employee and previous disciplinary actions).

The suspension should be clearly explained in a written disciplinary warning to the employee and should indicate any possible consequences of further performance, attendance, or behavior issues.

Dismissal Action

Dismissal is advised when, among other reasons, an employee has engaged in serious misconduct, or an employee has not corrected performance and/or behavior.

Prior to dismissing an employee, department management must review the situation and related information with Human Resources and supply appropriate documentation.

If Human Resources approves the dismissal, it is advised, when possible, that the dismissal be communicated verbally and in writing. The written letter of termination should include the reason for termination, effective date, rights to the grievance process and applicable information regarding termination from the University. Human Resources can provide advice on composing the letter of dismissal.

Former employees who are terminated for cause are generally not eligible for rehire.

8.4.3 Job Abandonment

When an employee does not report to work for three consecutive, scheduled workdays and does not properly communicate with the department as to his/her whereabouts or intentions regarding the job, the department may recommend to Human Resources that the employee be terminated for job abandonment. Prior to taking such action, the supervisor should make a reasonable effort to contact the employee to determine the employee's intentions regarding the job.

8.4.4 Personal Appearance

Kennesaw State University is a varying environment, and it is difficult for the University to have one uniform dress code. However, Kennesaw State University is a professional organization with a high level of visibility in the community. Discretion in style of dress and behavior is essential to the efficient operation of the University. Employees are, therefore, required to dress in appropriate attire and to behave in a professional, business-like manner. Questions about appropriate attire and behavior may be directed to the employee's supervisor.

8.4.5 Work Environment Appearance

Employees are required to keep their work environments clean and orderly and all equipment in good working condition.

GLOSSARY OF TERMS

Absenteeism – work time lost when employee does not come to work as scheduled.

Allocated Position – an established position funded through the budget process.

Alternative Dispute Resolution - includes dispute resolution processes and techniques that fall outside of the government judicial process.

Americans with Disabilities Act – Federal law prohibiting discrimination against a qualified individual with a disability; also known as ADA.

Applicant - someone who a) expresses an interest in a position, b) completes the required application process, and c) meets the minimum hiring standards for the job; and d) at no point in the selection process prior to receiving an offer of employment, removes himself/herself from further consideration or otherwise indicates that he/she is no longer interested in the position.

Base Hourly Rate – the hourly rate corresponding to the annual salary range assigned to an employee.

Break in Service - A break in service occurs when an employee has a break in employment within the University System of Georgia, State of Georgia Agency and/or any affiliate of either.

Broadband Structure – salary band used for staff positions.

Budgetary Unit – describes a department, center or an office that has a budget.

Classification – positions that have similar duties and responsibilities are assigned the same descriptive title and the same requirements as to education, experience, knowledge and ability.

COBRA (Consolidated Omnibus Budget Reconciliation Act) – Federal law that provides for continuation of group healthcare benefits for former employees and their families.

Continuous Service – shall mean service commencing with the employee's hire date and continuing until broken by termination.

Cost-of-Living Adjustment (COLA) – pay adjustment given to employees regardless of their performance; usually linked to inflation.

Date of First Benefitted Employment – the date used to mark the beginning of regular, benefited employment with Kennesaw State University. This date is used to determine leave accruals.

Demotion – a decrease in the duties and responsibilities assigned to an employee and a downward change in his/her classification and salary range.

Disability Benefits – monthly benefits paid under the Social Security Act to workers and eligible dependents or paid through a disability plan offered by Kennesaw State University.

Employee Right-to-Know Law – Occupational Safety and Health Act (OSHA) standard that requires the use of labeling, Material Safety Data Sheets, training, written hazard communication programs to inform employees of hazardous chemicals in the wor kplace.

Employment Date – the date an employee was employed by Kennesaw State University.

Exempt Employee – An employee that meets the FLSA requirements for exemption to overtime pay.

FLSA - Fair Labor Standards Act - regulates employee overtime status, overtime pay, minimum wage, record keeping and other administrative concerns and designates which jobs/positions are tracked and paid on an hourly basis and those that are paid on a salary basis.

FMLA – Family Medical Leave Act - entitles employees to take up to 26 weeks of unpaid leave each rolling 12-month period to care for a family member or because of a serious health condition of the employee.

4.3 (b) Plans – financial plan to contribute pretax dollars toward retirement savings allowed to employees of certain tax-exempt organizations. University employees may have a 4.3(b) in addition to their required retirement plan.

Full-Time Employee – employee shall perform job duties forty (40) hours per calendar week.

Garnishment of Wages – a creditor obtains a court order requiring an employer to attach an employee's earnings in order to pay back a debt.

Georgia Defined Contribution Plan - created by the 1992 Georgia Law, Act 996 and became effective on July 1, 1992; also known as GDCP. The administration and responsibility for the GDCP is under the Board of Trustees of the Employees' Retirement System (ERS). The purpose of this law was to provide a retirement system for temporary, seasonal, and part-time employees of the State of Georgia who were not eligible for membership in the Employees' Retirement System (ERS) or the Teachers Retirement System (TRS).

Grievance Procedure – a process to resolve employee grievances.

Group Term Life Insurance – insurance carried by employers for their employees that provides a lump-sum payment to the employee's beneficiaries.

HIPAA (Health Insurance Portability and Accountability Act) – Act intended to improve health-care coverage portability and accessibility.

Holiday – one of 12 specific days identified by Kennesaw State University within the calendar year as an official day off with pay for regular employees.

Immediate Family - Defined as spouse, parent, brother, sister, child, stepchild, grandparent, grandchild, parent-in-law, son-in-law, daughter-in-law, foster parent, legal guardian or domestic partner.

Job Analysis – a systematic study of jobs to determine what activities and responsibilities they include, relative importance and relationship with other jobs, qualifications necessary for performance of jobs and conditions under which work is performed.

Job Description – a summary of the most important features of a job, including minimum hiring standards, required tasks, knowledge, skills, abilities and responsibilities.

Job Posting – a public display of current available positions so interested and qualified employees may apply.

Lateral Transfer - a movement from one position to another at the same pay grade.

Minimum Hiring Standards – minimum level of knowledge (through education or training), skills and abilities that are required to perform the essential job functions assigned to a position.

Ombudsperson - A designated neutral party who provides confidential and informal assistance for resolving University-related concerns, especially those that are not being adequately addressed through usual procedures; the ombuds is independent of the University's formal administrative structure and will consider all sides of an issue in an impartial and objective manner; the ombuds cannot impose solutions, but will identify options and strategies for resolution.

Optional Retirement Plan (ORP) – The Optional Retirement Plan (ORP) of the University System of Georgia is a legislatively established retirement plan that was enacted in 1990. The ORP is a defined contribution plan qualified under the applicable provisions of Code Section 4.1(a).

Overtime – time worked by a non-exempt employee above the normal forty (40) hour work week.

Non-
Exempt Employee – a job status established by the FLSA as an hourly waged e

mployee; any hours worked over 40 hours must be paid overtime at a rate of time and a half unless the staff member prefers compensatory time at the rate of time and a half.

Part-Time Employee – an employee who works less than 40 hours a week; KSU regular employees scheduled to work more than 30 hours a week are eligible for participation in most benefit programs.

Performance Evaluation – the process that documents the degree to which an employee accomplishes work requirements and performance standards.

Performance Management – the process that provides an opportunity for employees and supervisors to discuss development goals and create plans to achieve them.

Performance Standards – expectations of management translated into behaviors and results that employees can deliver.

Preferred Qualifications – qualifications that are "ideal" for an applicant to have, but are not necessary to perform the essential job functions (or duties assigned to a position).

Progressive Discipline – A process designed to identify employee performance or behavior that falls below expectations and to outline constructive and corrective actions to promote employee success.

Promotion – an increase in the duties and responsibilities assigned to an employee and an upward change in his/her current job classification and salary range.

Provisional Period – the period in which each new employee is required to serve the first six months of employment at the University System of Georgia.

Qualifying Event – A qualifying event may necessitate mid-year changes in benefits status or enrollment. Examples of qualifying events may include adoption or birth, death of a dependent, dependent's loss of full-time student status, divorce, marriage or job status change for spouse.

Reclassification – a change in the duties and responsibilities assigned to an employee and a change in his/her current job classification.

Regular Employee – an employee of the University who is hired for continuous service.

Resignation - voluntary relinquishment of employment by an employee.

Rolling 12-Month Period – A twelve-month period marked at the beginning by a request for leave of absence and ending at the end of the succeeding twelve months.

Service Date – The initial date of hire at Kennesaw State University or any other member of the University System of Georgia; the employee must have no break in service between employments for the service date to carry-forward.

Sexual Harassment – unwelcome sexual advances, requests for sexual favors and other verbal or physical conduct of a sexual nature.

Temporary Employee – an employee who is hired for a pre-established period, full-time or part-time, and is not eligible for benefits.

Termination – end of employment, whether voluntary or for cause.

Transfer - the movement of an employee from one position to another within the University or University System of Georgia.

Vesting – process by which retirement benefits become non-forfeitable. The time period to which an employee has a right to the employer contributions in a retirement plan. Vesting determines the percentage of a retirement account that may be paid out upon termination of employment, or upon retirement, and is usually determined by years of eligible employment.

For the TRS defined-benefit plan, a member with at least ten years of creditable service has a vested right to a benefit at age 60. If an employee has 10 or more years of creditable service and leave a TRS covered position they will be entitled to a service retirement benefit upon attaining age 60 if they have not withdrawn their TRS contributions prior to that time.

For the ORP defined-contribution plan member vesting is immediate.

Workers' Compensation – state insurance program paid for by employers (KSU); designed to protect workers in cases of work-related injuries or diseases related to workers' employment.

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